

U.S. TREASURY DEPARTMENT'S OFFICE OF FOREIGN ASSETS CONTROL ("OFAC") ADVISORY NOTICE TO POLICYHOLDERS

No coverage is provided by this Policyholder Notice nor can it be construed to replace any provisions of your policy. You should read your policy and review your Declarations page for complete information on the coverages you are provided.

This Notice provides information concerning possible impact on your insurance coverage due to directives issued by OFAC. **Please read this Notice carefully.**

The Office of Foreign Assets Control (OFAC) administers and enforces sanctions policy, based on Presidential declarations of "national emergency". OFAC has identified and listed numerous:

- Foreign agents;
- Front organizations;
- Terrorists;
- Terrorist organizations; and
- Narcotics traffickers;

as "Specially Designated Nationals and Blocked Persons". This list can be located on the United States Treasury's web site – <http://www.treas.gov/ofac>.

In accordance with OFAC regulations, if it is determined that you or any other insured, or any person or entity claiming the benefits of this insurance has violated U.S. sanctions law or is a Specially Designated National and Blocked Person, as identified by OFAC, this insurance will be considered a blocked or frozen contract and all provisions of this insurance are immediately subject to OFAC. When an insurance policy is considered to be such a blocked or frozen contract, no payments nor premium refunds may be made without authorization from OFAC. Other limitations on the premiums and payments also apply.



Claims Reporting Options

On-line: intactspecialty.com

24/7 web-based claim reporting. Claim reporter receives a submission number; claim is assigned and insured is contacted within 1-2 business days by the adjuster.

24/7 Intact Claims Call Center: (877) 248-3455

24/7 Intact Claims Call Center receives and processes all new claims. Claims phoned into the 24/7 Intact Claims Call Center before 5 p.m. EST will be immediately assigned a claim number. You can go to your agent portal the next business day to view the claims.

Email Intact Claims Reporting: commercialloss@intactinsurance.com

Required For Email Loss Reporting:

- **ACORD First Notice of Loss Forms:** See your agent portal, Agent Resources, Claim Resources for editable electronic versions of the approved ACORD notices, or email arohde@intactinsurance.com to receive copies via email.
- Attachments supporting a claim can be included in the email transmission.
- Email only one complete claim transaction at a time.

For claims reported via the Intact email system, the sender's email confirmation will serve as the acknowledgement of receipt.

24/7 Intact Fax Claims Reporting

- Non-Workers' Compensation Claims: **(866) 213-2802**
- Workers' Compensation Claims: **(800) 224-4416**

For claims reported via fax to Intact, the sender's fax receipt will serve as the confirmation of receipt.

Claims Information Available via the Agent Portal:

Producers can find information on all claims on the Intact Agent Portal. After reporting a new loss, producers can confirm the claim number and the adjuster assigned, and later access the adjuster's file notes and review financial transactions. In addition, the Intact Agent Portal enables producers to communicate directly with adjusters by e-mail. If you have any questions about how to access this valuable site, you can go to the Agent Portal for a step by step tutorial or contact arohde@intactinsurance.com to schedule personal instruction.



Intact Insurance Specialty Solutions

enviro@vantage

Homeland Insurance Company of New York
605 Highway 169 North, Suite 800
Plymouth, MN 55441

(800) 662-0156
A Stock Company

This insurance has been placed with an insurer that is not licensed by the State of Michigan. In case of insolvency, payment of claims may not be guaranteed.

Common Policy Declarations

THIS POLICY IS EXEMPT FROM THE FILING REQUIREMENTS OF SECTION 2236 OF THE INSURANCE CODE OF 1956, 1956 PA 218, MCL 500.2236

Named Insured and Mailing Address**Policy Number:** 793-01-45-94-0000

INDUSTRIAL SERVICES INC.
20901 BOWENS RD
MANCHESTER, MI 48158-8802

In return for the payment of the premium, and subject to all terms of this policy, we agree with you to provide the insurance as stated in this policy.

Policy Period From: January 01, 2026 To: January 01, 2027
at 12:01 A.M. Standard Time at your mailing address shown above.

The Named Insured is a(n): Corporation

Business Description: Environmental Contractors

Producer

AMWINS INSURANCE BROKERAGE, LLC
4520 MAIN STREET, SUITE 500
KANSAS CITY, MO 64111

Total Premium

At inception: \$41,032

Forms applicable to this Policy:

See ASC 00 11 COMFRMS 01 98, Schedule 1

Michigan Premium: \$41,032.00

Fees: N/A

Surplus Lines Tax / Regulatory Fee: \$1,025.80

In witness whereof, we have issued this policy, signed by the President and Secretary, but it shall not be valid unless countersigned by our duly authorized representative.


Secretary


President

Countersigned _____
Authorized Representative Date

**COMMON POLICY DECLARATIONS
PREMIUM STATEMENT**

Named Insured:
INDUSTRIAL SERVICES INC.
20901 BOWENS RD
MANCHESTER, MI 48158-8802

Producer:
AMWINS INSURANCE BROKERAGE, LLC
4520 MAIN STREET, SUITE 500
KANSAS CITY, MO 64111

Premium Statement for the period from January 01, 2026 **to** January 01, 2027

This policy consists of the following coverage parts for which a premium is indicated. This premium may be subject to adjustment.

COVERAGE SECTION	PREMIUM		
	At Inception	1st Anniversary	2nd Anniversary
Liability Coverage	\$41,032		
Total Advanced Premium	\$41,032		

Minimum Earned Premium

This policy is subject to a Minimum Earned Premium which is 25% (\$10,258) of the Total Policy Premium shown in the Declarations. The Minimum Earned Premium is the least amount of premium we shall retain as earned premium, regardless of the policy term.

Premium Basis

\$7,400,000 (estimated revenue)

Rate

Flat/Not Auditable

SCHEDULE 1

Effective 01/01/2026, this schedule forms a part of Policy No. 793-01-45-94-0000

(At the time stated in the policy)

issued to

INDUSTRIAL SERVICES INC.

Producer: AMWINS INSURANCE BROKERAGE, LLC

by Homeland Insurance Company of New York

Common Policy Declarations, 4 VIL 100 NA 04 23, Continued:

Forms applicable to this Policy:

4 VIL 100 NA 04 23	COMMON POLICY DECLARATIONS
IL 02 86 04 17	MI CHANGES - CANCELLATION & NONRENEWAL
OBENV CE 202 06 24	AMENDMENT OF DAMAGE TO YOUR WORK
OBENV CE 314 06 24	FUNGI AND MOLD LIABILITY COVERAGE - CLAIMS MADE
OBENV CE 336 06 24	COVERAGE ENHANCEMENT - GREEN BUILDING UPGRADES - CONTRACTORS ENVIRONMENTAL LIABILITY AND ENVIRONMENTAL PREMISES LIABILITY
OBENV GE 001 02 11	COMMON POLICY DECLARATIONS PREMIUM STATEMENT
OBENV GE 220 06 24	INFECTIOUS DISEASES EXCLUSION
OBENV GE 233 06 24	PERFLOURINATED CHEMICALS, PER- AND POLYFLOUROALKYL SUBSTANCES AND PERFLOUROCARBONS EXCLUSION
OBENV GE 316 06 24	NAMED INSURED ENDORSEMENT
OBENV GE 319 06 24	PRIMARY AND NONCONTRIBUTORY - OTHER INSURANCE CONDITION
OBENV GE 320 06 24	WAIVER OF TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US
OBENV GE 323 06 24	CONTRACTORS AMENDATORY ENDORSEMENT
OBENV GE 325 06 24	EMERGENCY RESPONSE COSTS AGGREGATE LIMIT ENDORSEMENT
OBENV GE 346 06 24	ADDITIONAL INSURED - OWNERS, LESSEES OR CONTRACTORS - SCHEDULED PERSON OR ORGANIZATION - FORM III
OBENV GE 351 06 24	ADDITIONAL INSURED - OWNERS, LESSEES OR CONTRACTORS - COMPLETED OPERATIONS
OBENV GE 402 06 24	ENVIRONMENTAL CLAIMS REPORTING NOTICE
OBENV GL 001 02 11	LIABILITY COVERAGE PART DECLARATIONS
OBENV GL 101 06 24	COMMERCIAL GENERAL LIABILITY COVERAGE FORM I
OBENV GL 324 06 24	DESIGNATED CONSTRUCTION PROJECT(S) AGGREGATE LIMIT

3 0-00-0000 01/07/2026 SNB CPW PR 1.000

SCHEDULE 1

Effective 01/01/2026, this schedule forms a part of Policy No. 793-01-45-94-0000

(At the time stated in the policy)

issued to

INDUSTRIAL SERVICES INC.

Producer: AMWINS INSURANCE BROKERAGE, LLC

by Homeland Insurance Company of New York

Common Policy Declarations, 4 VIL 100 NA 04 23, Continued:

Forms applicable to this Policy:

OBENV GL 338 08 21	EXCLUSION - ABUSE, MOLESTATION, SEXUAL MISCONDUCT OR SEXUAL OFFENSE
OBENV GL 342 06 24	CONTRACTUAL LIABILITY - RAILROADS
OBENV PL 202 06 24	GEOTECHNICAL-RELATED OPERATIONS EXCLUSION
OBENV PL 310 06 24	DESIGNATED PROFESSIONAL SERVICES ENDORSEMENT
OBENV TR 400 01 25	EXCL OF CERTIFIED ACTS OF TERRORISM & EXCL OF OTHER ACTS OF TERROR
OB IL 001 10 15	SERVICE OF SUIT
ASC 00 11 COMFRMS 01 98	Schedule 1 - LIST OF COMMON POL FORMS

3 0-00-0000 01/07/2026 SNB CPW PR 1.000

LIABILITY COVERAGE PART DECLARATIONS

This policy consists of the following coverages for which a limit of insurance is indicated. Where "NOT COVERED" is shown, there is no coverage.

Limits of Insurance

Policy Aggregate Limit	\$2,000,000	
Commercial General Liability Coverage Part		
Each Occurrence Limit	\$1,000,000	
General Aggregate Limit	\$2,000,000	
(other than Products/Completed Operations)		
Products/Completed Operations Aggregate Limit	\$2,000,000	
Personal and Advertising Injury Limit	\$1,000,000	Any One Person or Organization
Damage to Premises Rented to You Limit	\$50,000	Any One Premise
Medical Expenses Limit	\$5,000	Any One Person
Contractors Environmental Liability Coverage Part		
Contractors Pollution Liability	\$1,000,000	Each Pollution Condition
Transportation Pollution Liability	\$1,000,000	Each Pollution Condition
Non-Owned Disposal Site Liability	\$1,000,000	Each Pollution Condition
Short-Term Environmental Premises Liability	Not Covered	
Professional Services Liability Coverage Part		
Professional Services Liability	\$1,000,000	Each Professional Services Wrongful Act

Deductibles

Commercial General Liability Coverage Part	\$5,000	Each Occurrence
Contractors Environmental Liability Coverage Part		
Contractors Pollution Liability	\$5,000	Each Pollution Condition
Transportation Pollution Liability	\$5,000	Each Pollution Condition
Non-Owned Disposal Site Liability	\$5,000	Each Pollution Condition
Short-Term Environmental Premises Liability	Not Covered	
Professional Services Liability Coverage Part		
Professional Services Liability	\$5,000	Each Claim

Coverage Retroactive Date(s)

This policy consists of the following coverages for which a Retroactive Date may be applicable.
If Not Covered is shown, no Retroactive Date applies.

Contractors Environmental Liability Coverage Part	
Non-Owned Disposal Site Liability	January 01, 2026
Professional Services Liability Coverage Part	
Professional Services Liability	January 01, 2019

Environmental Commercial General Liability Package Coverage Form



VARIOUS PROVISIONS CONTAINED IN THIS POLICY RESTRICT COVERAGE. READ THE ENTIRE POLICY CAREFULLY TO DETERMINE RIGHTS, DUTIES AND WHAT IS AND IS NOT COVERED.

VARIOUS COVERAGES CONTAINED IN THIS POLICY ARE WRITTEN ON A CLAIMS MADE AND REPORTED BASIS. UNDER THOSE COVERAGES, THE CLAIM MUST BE FIRST MADE OR BROUGHT AND REPORTED TO THE COMPANY DURING THE POLICY PERIOD, OR DURING AN EXTENDED REPORTING PERIOD, IF APPLICABLE.

VARIOUS COVERAGES IN THIS POLICY ARE WRITTEN ON A DEFENSE WITHIN LIMITS BASIS. UNDER THOSE COVERAGES, THE AMOUNT OF MONEY AVAILABLE TO PAY JUDGMENTS OR SETTLEMENTS WILL BE REDUCED AND MAY BE EXHAUSTED BY DEFENSE EXPENSES AND OTHER SUPPLEMENTARY PAYMENTS, INCLUDING BUT NOT LIMITED TO FEES PAID TO ATTORNEYS TO DEFEND YOU.

Throughout this policy the words "you" and "your" refer to the **Named Insured** shown in the Declarations, and any other person or organization qualifying as a **Named Insured** under this policy. The words "we", "us" and "our" refer to the company providing this insurance. The word "insured" means any person or organization qualifying as such under **SECTION II – WHO IS AN INSURED**. Other words and phrases that appear in bold have special meanings. Refer to **SECTION VI – DEFINITIONS**.

In consideration of the premium paid and in reliance upon the statements contained in the application and any other supplemental information provided to us, we agree to provide coverage as shown in the Declarations and as described herein:

SECTION I – COVERAGES

The **COVERAGES** in the following **COVERAGE PARTS** apply only if indicated on the Declarations.

COVERAGE PART: COMMERCIAL GENERAL LIABILITY

COVERAGE A BODILY INJURY AND PROPERTY DAMAGE LIABILITY

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of **bodily injury** or **property damage** to which this insurance applies. We will have the right and duty to defend the insured against any **suit** seeking those damages. However, we will have no duty to defend the insured against any **suit** seeking damages for **bodily injury** or **property damage** to which this insurance does not apply. We may, at our discretion, investigate any **occurrence** and settle any **claim** that may result. But:

- (1) The amount we will pay for damages is limited as described in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**; and
- (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments, settlements, **cleanup costs**, medical expenses or Supplementary Payments under this policy.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

- b. This insurance applies to **bodily injury** and **property damage** only if:

- (1) The **bodily injury** or **property damage** is caused by an **occurrence** that takes place in the **coverage territory**;
- (2) The **bodily injury** or **property damage** occurs during the **policy period**; and

- (3) Prior to the **policy period**, no insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** and no **responsible employee** knew that the **bodily injury** or **property damage** had occurred, in whole or in part. If such a listed insured or **responsible employee** knew, prior to the **policy period**, that the **bodily injury** or **property damage** occurred, then any continuation, change or resumption of such **bodily injury** or **property damage** during or after the **policy period** will be deemed to have been known prior to the **policy period**.
- c. **Bodily injury** or **property damage** which occurs during the **policy period** and was not, prior to the **policy period**, known to have occurred by any insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** or any **responsible employee**, includes any continuation, change or resumption of that **bodily injury** or **property damage** after the end of the **policy period**.
- d. **Bodily injury** or **property damage** will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** or any **responsible employee**:
- (1) Reports all, or any part, of the **bodily injury** or **property damage** to us or any other insurer;
 - (2) Receives a written or verbal demand or **claim** for damages because of the **bodily injury** or **property damage**; or
 - (3) Becomes aware by any other means that **bodily injury** or **property damage** has occurred or has begun to occur.
- e. Damages because of **bodily injury** include damages claimed by any person or organization for care, loss of services or death resulting at any time from the **bodily injury**.
- f. In the event that **bodily injury** or **property damage** first occurs during a policy issued by us and also occurs during one or more successive policies issued by us, only the policy during which the **bodily injury** or **property damage** first occurred will respond. Under no circumstance will more than one policy issued by us provide coverage for any continuing, changing or resuming **bodily injury** or **property damage**.

2. Exclusions

In addition to the exclusions found in **GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)**, this insurance does not apply to any:

a. Aircraft, Auto Or Watercraft

Bodily injury, property damage or **claim** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any ownership, maintenance, use or entrustment to others of any aircraft, **auto** or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and **loading or unloading**.

This exclusion applies even if the **claims** against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the **occurrence** which caused the **bodily injury** or **property damage** involved the ownership, maintenance, use or entrustment to others of any aircraft, **auto** or watercraft that is owned or operated by or rented or loaned to any insured.

This exclusion does not apply to:

- (1) A watercraft while ashore on premises you own or rent;
- (2) A watercraft you do not own that is:
 - (a) Less than 26 feet long; and
 - (b) Not being used to carry persons or property for a charge;
- (3) Parking an **auto** on, or on the ways next to, premises you own or rent, provided the **auto** is not owned by or rented or loaned to you or the insured;

(4) Liability assumed under any **insured contract** for the ownership, maintenance or use of aircraft or watercraft; or

(5) **Bodily injury, property damage or claim** arising out of:

(a) The operation of machinery or equipment that is attached to, or part of, a land vehicle that would qualify under the definition of **mobile equipment** if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged; or

(b) The operation of any of the machinery or equipment listed in Paragraph **f.(2)** or **f.(3)** of the definition of **mobile equipment**.

b. Construction Management Errors and Omissions

Bodily injury, property damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any:

(1) Preparing, approving, or failure to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications by any architect, engineer or surveyor performing services on a project on which you serve as construction manager; or

(2) Inspection, supervision, quality control, architectural or engineering activities done by or for you on a project on which you serve as construction manager.

This exclusion applies even if the **claims** against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the **occurrence** which caused the **bodily injury or property damage** involved that which is described in Paragraph (1) or (2).

This exclusion does not apply to **bodily injury or property damage** due to construction or demolition work done by you, your **employees**, your independent contractors or your subcontractors.

c. Damage To Property

Property damage to:

(1) Property you own, rent, or occupy, including any costs or expenses incurred by you, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including prevention of injury to a person or damage to another's property;

(2) Premises you sell, give away or abandon, if the **property damage** arises out of any part of those premises;

(3) Property loaned to you;

(4) Personal property in the care, custody or control of the insured;

(5) That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the **property damage** arises out of those operations; or

(6) That particular part of any property that must be restored, repaired or replaced because **your work** was incorrectly performed on it.

Paragraphs (1), (3) and (4) of this exclusion do not apply to **property damage** (other than damage by fire) to premises, including the contents of such premises, rented to you for a period of seven (7) or fewer consecutive days. A separate limit of insurance applies to Damage To Premises Rented To You as described in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**.

Paragraph (2) of this exclusion does not apply if the premises are **your work** and were never occupied, rented or held for rental by you.

Paragraphs (3), (4), (5) and (6) of this exclusion do not apply to liability assumed under a sidetrack agreement.

Paragraph (6) of this exclusion does not apply to **property damage** included in the **products-completed operations hazard**.

d. Employer's Liability

Bodily injury to:

(1) An **employee** of the insured arising out of and in the course of:

- (a) Employment by the insured; or
- (b) Performing duties related to the conduct of the insured's business; or

(2) The spouse, child, parent, brother or sister of that **employee** as a consequence of Paragraph (1) above.

This exclusion applies whether the insured may be liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an **insured contract**.

e. Lead

(1) **Bodily injury, property damage or claim** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any actual, alleged, threatened or suspected inhalation, ingestion, absorption, consumption, discharge, dispersal, seepage, migration, release or escape of, contact with, exposure to, existence of, or presence of, lead in any form at any time.

(2) Loss, cost or expense based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any:

- (a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, abate, clean up, remove, contain, treat, detoxify, neutralize, remediate, or dispose of, or in any way respond to, or assess the effects of lead in any form, by any insured or by any other person or entity; or
- (b) **Claim** by or on behalf of a governmental authority for damages because of testing for, monitoring, abating, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating, or disposing of, or in any way responding to, or assessing the effects of, lead in any form.

f. Liquor Liability

Bodily injury, property damage or claim for which any insured may be held liable by reason of:

- (1) Causing or contributing to the intoxication of any person;
- (2) The furnishing of alcoholic beverages to a person under the legal drinking age or under the influence of alcohol; or
- (3) Any statute, ordinance or regulation relating to the sale, gift, distribution or use of alcoholic beverages.

This exclusion applies even if the **claims** against any insured allege negligence or other wrongdoing in:

- (a) The supervision, hiring, employment, training or monitoring of others by that insured; or
- (b) Providing or failing to provide transportation with respect to any person that may be under the influence of alcohol;

if the **occurrence** which caused the **bodily injury** or **property damage**, involved that which is described in Paragraph (1), (2) or (3) above.

However, this exclusion applies only if you are in the business of manufacturing, distributing, selling, serving or furnishing alcoholic beverages. For the purposes of this exclusion, permitting a person to bring alcoholic beverages on your premises, for consumption on your premises, whether or not a fee is charged or a license is required for such activity, is not by itself considered the business of selling, serving or furnishing alcoholic beverages.

g. Mobile Equipment

Bodily injury, property damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving:

- (1) The transportation of **mobile equipment** by an **auto** owned or operated by or rented or loaned to any insured; or
- (2) The use of **mobile equipment** in, or while in practice for, or while being prepared for, any prearranged racing, speed, demolition, or stunting activity.

h. Personal And Advertising Injury

Bodily injury or claim arising out of **personal and advertising injury**.

i. Pollution

- (1) **Bodily injury, property damage or claim** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any actual, alleged, threatened or suspected inhalation, ingestion, absorption, consumption, discharge, dispersal, seepage, migration, release or escape of, contact with, exposure to, existence of, or presence of, any **pollutants** at any time.
- (2) Loss, cost or expense based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any:
 - (a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, abate, clean up, remove, contain, treat, detoxify, neutralize, remediate, or dispose of, or in any way respond to, or assess the effects of **pollutants**, by any insured or by any other person of entity; or
 - (b) **Claim** by or on behalf of a governmental authority for damages because of testing for, monitoring, abating, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating, or disposing of, or in any way responding to, or assessing the effects of, **pollutants**.

j. Professional Services

Bodily injury, property damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any rendering of or failure to render **professional services**.

This exclusion applies even if the **claims** against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by any insured, if the **occurrence** which caused the **bodily injury** or **property damage** involved the rendering of or failure to render **professional services**.

k. Recall Of Products, Work Or Impaired Property

Damages claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

- (1) **Your product;**
- (2) **Your work;** or
- (3) **Impaired property;**

if such product, work, or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

I. Testing Or Consulting Error And Omissions

Bodily injury, property damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving:

- (1) Any error, omission, defect or deficiency in:
 - (a) Any test performed; or
 - (b) An evaluation, a consultation or advice given;by or on behalf of any insured;
- (2) Any reporting of or reliance upon any such test, evaluation, consultation or advice; or
- (3) Any error, omission, defect or deficiency in data or any insured's interpretation of that data.

This exclusion applies even if the **claims** against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the **occurrence** which caused the **bodily injury or property damage** involved that which is described in Paragraph (1), (2) or (3).

Exclusions **a., c., d., g., i., and k.** in **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** do not apply to damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner. A separate limit of insurance applies to this coverage as described in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**.

COVERAGE B PERSONAL AND ADVERTISING INJURY LIABILITY

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of **personal and advertising injury** to which this insurance applies. We will have the right and duty to defend the insured against any **suit** seeking those damages. However, we will have no duty to defend the insured against any **suit** seeking damages for **personal and advertising injury** to which this insurance does not apply. We may, at our discretion, investigate any offense and settle any **claim** that may result. But:

- (1) The amount we will pay for damages is limited as described in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**; and
- (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments, settlements, **cleanup costs**, medical expenses or Supplementary Payments under this policy.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

- b. This insurance applies to **personal and advertising injury** caused by an offense arising out of your business but only if the offense was committed in the **coverage territory** during the **policy period**.

- c. In the event that **personal and advertising injury** is caused by an offense first committed during a policy issued by us and also committed during one or more successive policies issued by us, only the policy during which the offense was first committed will respond. Under no circumstance will more than one policy issued by us provide coverage for any continuing, changing or resuming **personal and advertising injury**.

2. Exclusions

In addition to the exclusions found in **GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)**, this insurance does not apply to any:

a. Breach Of Contract

Personal and advertising injury or **claim** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any breach of contract, except an implied contract to use another's advertising idea in your **advertisement**.

b. Criminal Acts

Personal and advertising injury or **claim** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any criminal act committed by or at the direction of any insured.

c. Electronic Chatrooms Or Bulletin Boards

Personal and advertising injury or **claim** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any electronic chatroom or bulletin board any insured hosts, owns, or over which any insured exercises control.

d. Infringement Of Copyright, Patent, Trademark Or Trade Secret

Personal and advertising injury or **claim** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any infringement of copyright, patent, trademark, trade secret or other intellectual property rights. Under this exclusion, such other intellectual property rights do not include the use of another's advertising idea in your **advertisement**.

However, this exclusion does not apply to infringement, in your **advertisement**, of copyright, trade dress or slogan.

e. Insureds In Media And Internet Type Businesses

Personal and advertising injury committed by any insured whose business is:

- (1) Advertising, broadcasting, publishing or telecasting;
- (2) Designing or determining content of websites for others; or
- (3) An Internet search, access, content or service provider.

However, this exclusion does not apply to Paragraphs **a.**, **b.** and **c.** of the definition of **personal and advertising injury**.

For the purposes of this exclusion, the placing of frames, borders or links, or advertising, for you or others anywhere on the Internet, is not by itself, considered the business of advertising, broadcasting, publishing or telecasting.

f. Knowing Violation Of Rights Of Another

Personal and advertising injury caused by or at the direction of any insured with the knowledge that the act would violate the rights of another and would inflict **personal and advertising injury**.

g. Lead and Lead-Related

- (1) **Personal and advertising injury or claim** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any actual, alleged, threatened or suspected inhalation, ingestion, absorption, consumption, discharge, dispersal, seepage, migration, release or escape of, contact with, exposure to, existence of, or presence of, lead in any form at any time.
- (2) Loss, cost or expense based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any:
- (a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, abate, clean up, remove, contain, treat, detoxify, neutralize, remediate, or dispose of, or in any way respond to, or assess the effects of lead in any form, by any insured or by any other person of entity; or
 - (b) **Claim** by or on behalf of a governmental authority for damages because of testing for, monitoring, abating, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating, or disposing of, or in any way responding to, or assessing the effects of, lead in any form.

h. Material Published With Knowledge Of Falsity

Personal and advertising injury or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any oral or written publication, in any manner, of material, if done by or at the direction of any insured with knowledge of its falsity.

i. Material Published Prior To Policy Period

Personal and advertising injury or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any oral or written publication, in any manner, of material whose first publication took place before the beginning of the **policy period**.

j. Pollution

Personal and advertising injury or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any actual, alleged threatened or suspected inhalation, ingestion, absorption, consumption, discharge, dispersal, seepage, migration, release or escape of, contact with, exposure to, existence of, or presence of, any **pollutants** at any time.

k. Pollution-related

Loss, cost or expense based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any:

- (1) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, **pollutants**; or
- (2) **Claim** by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, **pollutants**.

l. Professional Services

Personal and advertising injury or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any rendering of or failure to render any **professional services**.

This exclusion applies even if the **claims** against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by any insured, if the offense which caused the **personal and advertising injury** involved the rendering of or failure to render **professional services**.

m. Quality Or Performance Of Goods – Failure To Conform To Statements

Personal and advertising injury or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any failure of goods, products or services to conform with any statement of quality or performance made in your **advertisement**.

n. Testing Or Consulting Error And Omissions

Personal and advertising injury or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving:

(1) Any error, omission, defect or deficiency in:

(a) Any test performed; or

(b) An evaluation, a consultation or advice given;

by or on behalf of any insured;

(2) Any reporting of or reliance upon any such test, evaluation, consultation or advice; or

(3) Any error, omission, defect or deficiency in data or any insured's interpretation of that data.

This exclusion applies even if the **claims** against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the offense which caused the **personal and advertising injury**, involved that which is described in Paragraph (1), (2) or (3).

o. Unauthorized Use Of Another's Name Or Product

Personal and advertising injury or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any unauthorized use of another's name or product in your e-mail address, domain name or metatag, or any other similar tactics to mislead another's potential customers.

p. Wrong Description Of Prices

Personal and advertising injury or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any wrong description of the price of goods, products or services stated in your **advertisement**.

COVERAGE C MEDICAL PAYMENTS

1. Insuring Agreement

a. We will pay medical expenses as described below for **bodily injury** caused by an accident:

(1) On premises you own or rent;

(2) On ways next to premises you own or rent; or

(3) Because of your operations;

provided that:

(a) The accident takes place in the **coverage territory** and during the **policy period**;

(b) The expenses are incurred and reported to us within one year of the date of the accident; and

(c) The injured person submits to examination, at our expense, by physicians of our choice as often as we reasonably require.

- b. We will make these payments regardless of fault. These payments will not exceed the applicable limit of insurance. We will pay reasonable expenses for:
 - (1) First aid administered at the time of an accident;
 - (2) Necessary medical, surgical, x-ray and dental services, including prosthetic devices; and
 - (3) Necessary ambulance, hospital, professional nursing and funeral services.

2. Exclusions

In addition to the exclusions found in **GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)**, we will not pay expenses for **bodily injury**:

a. Any Insured

To any insured, except **volunteer workers**.

b. Athletics Activities

To a person injured while practicing, instructing or participating in any physical exercises or games, sports, or athletic contests.

c. Other Bodily Injury Coverage Exclusions

Excluded under **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** or any other **COVERAGE** for **bodily injury**.

d. Hired Person

To a person hired to do work for or on behalf of any insured or a tenant of any insured.

e. Injury On Normally Occupied Premises

To a person injured on that part of premises you own or rent that the person normally occupies.

f. Products-Completed Operations Hazard

Included within the **products-completed operations hazard**.

g. Workers Compensation And Similar Laws

To a person, whether or not an **employee** of any insured, if benefits for the **bodily injury** are payable or must be provided under a workers' compensation or disability benefits law or a similar law.

COVERAGE PART: CONTRACTORS ENVIRONMENTAL LIABILITY

COVERAGE D CONTRACTORS POLLUTION LIABILITY

This **COVERAGE** is a **defense within limits coverage**.

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages or **cleanup costs** because of **bodily injury**, **property damage** or **environmental damage** to which this insurance applies. We will have the right and duty to defend the insured against any **suit** seeking those damages or **cleanup costs**. However, we will have no duty to defend the insured against any **suit** seeking damages or **cleanup costs** for **bodily injury**, **property damage** or **environmental damage** to which this insurance does not apply. We may, at our discretion, investigate any **pollution condition** and settle any **claim** that may result. But:

- (1) The amount we will pay for damages, **cleanup costs** and Supplementary Payments is limited as described in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**; and
- (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments, settlements, **cleanup costs**, medical expenses or Supplementary Payments under this policy.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

b. This insurance applies to **bodily injury, property damage or environmental damage** only if:

- (1) The **bodily injury, property damage or environmental damage** is directly caused by a **pollution condition** that takes place in the **coverage territory**;
- (2) The **pollution condition** is directly caused by your **covered operations**;
- (3) The **bodily injury, property damage or environmental damage** first occurs during the **policy period**; and
- (4) Prior to the **policy period**, no insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** and no **responsible employee** knew that the **bodily injury, property damage or environmental damage** had occurred, in whole or in part. If such a listed insured or **responsible employee** knew, prior to the **policy period**, that the **bodily injury, property damage or environmental damage** occurred, then any continuation, change or resumption of such **bodily injury, property damage or environmental damage** during or after the **policy period** will be deemed to have been known prior to the **policy period**.

c. **Bodily injury, property damage or environmental damage** which occurs during the **policy period** and was not, prior to the **policy period**, known to have occurred by any insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** or any **responsible employee**, includes any continuation, change or resumption of that **bodily injury, property damage or environmental damage** after the end of the **policy period**.

d. **Bodily injury, property damage or environmental damage** will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** or any **responsible employee**:

- (1) Reports all, or any part, of the **bodily injury, property damage or environmental damage** to us, any other insurer or any governmental authority;
- (2) Receives a written or verbal demand or **claim** for damages or **cleanup costs** because of the **bodily injury, property damage or environmental damage**; or
- (3) Becomes aware by any other means that **bodily injury, property damage or environmental damage** has occurred or has begun to occur.

e. Damages because of **bodily injury** include damages claimed by any person or organization for care, loss of services or death resulting at any time from **bodily injury**.

f. In the event that **bodily injury, property damage or environmental damage** first occurs during a policy issued by us and also occurs during one or more successive policies issued by us, only the policy during which the **bodily injury, property damage or environmental damage** first occurred will respond. Under no circumstance will more than one policy issued by us provide coverage for any continuing, changing or resuming **bodily injury, property damage or environmental damage**.

2. Exclusions

In addition to the exclusions found in **GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)**, this insurance does not apply to any:

a. Aircraft, Auto Or Watercraft

Bodily injury, property damage, environmental damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any ownership, maintenance, use or entrustment to others of any aircraft, **auto** or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and **transportation operations**.

This exclusion applies even if the **claims** against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the **occurrence** which caused the **bodily injury, property damage or environmental damage** involved the ownership, maintenance, use or entrustment to others of any aircraft, **auto** or watercraft that is owned or operated by or rented or loaned to any insured.

This exclusion does not apply to **bodily injury, property damage or environmental damage** arising out of **loading or unloading** or movement of goods, products or waste while within the legal boundaries of the **job site**.

b. Asbestos

Bodily injury, property damage, environmental damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any manufacture of, mining of, sale or distribution of, or installation of asbestos products, asbestos fibers or asbestos dust.

For the purposes of this exclusion, **bodily injury** shall include disability, disease, occupational disease, sickness and shock.

c. Employer's Liability

Bodily injury to:

(1) An **employee** of any insured caused, in whole or in part by, or arising, directly or indirectly, out of and in the course of:

(a) Employment by any insured; or

(b) Performing duties related to the conduct of any insured's business; or

(2) The spouse, child, parent, brother or sister of that **employee** as a consequence of Paragraph (1) above.

This exclusion applies whether any insured may be liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an **insured contract**.

d. Insured's Real Property

Bodily injury, property damage, environmental damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any insured's ownership, rental, lease, maintenance, operation, use, abandonment or condemnation of real property.

This exclusion does not apply to any **bodily injury, property damage or environmental damage** arising out of:

(1) Real property temporarily rented, leased or occupied by the **Named Insured** for the purpose of storing or staging equipment and construction materials during the course of performing **covered operations**.

(2) Asbestos that was transported, stored, or otherwise handled as a part of **covered operations** in accordance with applicable regulations that is temporarily stored for a period to time not to exceed fourteen (14) days at premises owned, rented or leased by you.

e. Products Liability

(1) **Property damage to your product**; and

(2) **Bodily injury, property damage, environmental damage or claim** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving **your product**, or its design, including but not limited to, goods or products manufactured, sold, handled, distributed, altered or repaired by any insured or by others trading under your name, including any container thereof, or any reliance upon a representation or warranty made at any time with respect thereto.

This exclusion does not apply to **bodily injury, property damage or environmental damage** arising out of the fabrication, assembly or installation of goods, materials, or products in connection with **covered operations** performed at a **job site** prior to putting **your product** to its intended use.

f. Professional Services

Bodily injury, property damage, environmental damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any rendering of or failure to render **professional services** by or on behalf of any insured.

This exclusion applies even if the **claims** against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by any insured.

g. Waste Disposal

Bodily injury, property damage, environmental damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any **pollution condition** at a location used to treat, process, store or dispose of material or waste generated by **covered operations** or **your product** or originated from a **covered location**.

COVERAGE E TRANSPORTATION POLLUTION LIABILITY

This **COVERAGE** is a **defense within limits coverage**.

1. Insuring Agreement

a. We will pay those sums that the insured becomes legally obligated to pay as damages or **cleanup costs** because of **bodily injury, property damage or environmental damage** to which this insurance applies. We will have the right and duty to defend the insured against any **suit** seeking those damages or **cleanup costs**. However, we will have no duty to defend the insured against any **suit** seeking damages or **cleanup costs** for **bodily injury, property damage or environmental damage** to which this insurance does not apply. We may, at our discretion, investigate any **pollution condition** and settle any **claim** that may result. But:

(1) The amount we will pay for damages, **cleanup costs** and Supplementary Payments is limited as described in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**; and

(2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments, settlements, **cleanup costs**, medical expenses or Supplementary Payments under this policy.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

b. This insurance applies to **bodily injury, property damage or environmental damage** only if:

(1) The **bodily injury, property damage or environmental damage** is directly caused by a **pollution condition** that takes place in the **coverage territory**;

(2) The **pollution condition** is directly caused by your **transportation operations** first performed during the **policy period**;

- (3) The **bodily injury, property damage or environmental damage** first occurs during the **policy period**; and
- (4) Prior to the **policy period**, no insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** and no **responsible employee** knew that the **bodily injury, property damage or environmental damage** had occurred, in whole or in part. If such a listed insured or **responsible employee** knew, prior to the **policy period**, that the **bodily injury, property damage or environmental damage** occurred, then any continuation, change or resumption of such **bodily injury, property damage or environmental damage** during or after the **policy period** will be deemed to have been known prior to the **policy period**.
- c. **Bodily injury, property damage or environmental damage** which occurs during the **policy period** and was not, prior to the **policy period**, known to have occurred by any insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** or any **responsible employee**, includes any continuation, change or resumption of that **bodily injury, property damage or environmental damage** after the end of the **policy period**.
- d. **Bodily injury, property damage or environmental damage** will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** or any **responsible employee**:
- (1) Reports all, or any part, of the **bodily injury, property damage or environmental damage** to us, any other insurer or any governmental authority;
 - (2) Receives a written or verbal demand or **claim** for damages or **cleanup costs** because of the **bodily injury, property damage or environmental damage**; or
 - (3) Becomes aware by any other means that **bodily injury, property damage or environmental damage** has occurred or has begun to occur.
- e. Damages because of **bodily injury** include damages claimed by any person or organization for care, loss of services or death resulting at any time from **bodily injury**.
- f. In the event that **bodily injury, property damage or environmental damage** first occurs during a policy issued by us and also occurs during one or more successive policies issued by us, only the policy during which the **bodily injury, property damage or environmental damage** first occurred will respond. Under no circumstance will more than one policy issued by us provide coverage for any continuing, changing or resuming **bodily injury, property damage or environmental damage**.

2. Exclusions

In addition to the exclusions found in **GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)**, this insurance does not apply to any:

a. Aircraft, Auto Or Watercraft

Property damage to any aircraft, **auto** or watercraft utilized during **transportation operations**.

This exclusion does not apply to **claims** made by **carriers** for **property damage** arising out of the insured's negligence during **transportation operations**.

b. Asbestos

Bodily injury, property damage, environmental damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any manufacture of, mining of, sale or distribution of, or installation of asbestos products, asbestos fibers or asbestos dust.

For the purposes of this exclusion, **bodily injury** shall include disability, disease, occupational disease, sickness and shock.

c. Employer's Liability

Bodily injury to:

(1) An **employee** of any insured caused, in whole or in part by, or arising, directly or indirectly, out of and in the course of:

(a) Employment by any insured; or

(b) Performing duties related to the conduct of any insured's business; or

(2) The spouse, child, parent, brother or sister of that **employee** as a consequence of Paragraph (1) above.

This exclusion applies whether any insured may be liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an **insured contract**.

d. Financial Assurance

Obligation to demonstrate financial assurance or financial responsibility, or to meet any financial assurance or financial responsibility requirements under federal, state, provincial or local law.

e. Fuel and Lubricants

Bodily injury, property damage, environmental damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any fuels, lubricants, fluids, exhaust gases or other similar substances or materials that are:

(1) Used to further the operation of; or

(2) Needed for, or result from, the normal functioning of;

any **auto** or motor vehicle or its parts, or any attached machinery, equipment or trailer.

f. Waste Disposal

Bodily injury, property damage, environmental damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any **pollution condition** at a location used to treat, process, store or dispose of material or waste generated by **covered operations** or **your product** or originated from a **covered location**.

g. Wrongful Delivery

Bodily injury, property damage, environmental damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any delivery of:

(1) Any waste, product or material into the wrong receptacle or to the wrong address or wrong location;

(2) Any wrong type of waste, product or material;

(3) Any type of waste, product or material in error for another; or

(4) The wrong amount of any waste, product or material.

COVERAGE F NON-OWNED DISPOSAL SITE LIABILITY

This **COVERAGE** is claims-made and reported and is a **defense within limits coverage**.

1. Insuring Agreement

- b. We will pay those sums that the **Named Insured** becomes legally obligated to pay as damages or **cleanup costs** because of **bodily injury, property damage or environmental damage** to which this insurance applies. We will have the right and duty to defend the **Named Insured** against any **suit** seeking those damages or **cleanup costs**. However, we will have no duty to defend the **Named Insured** against any **suit** seeking damages or **cleanup costs** for **bodily injury, property damage or environmental damage** to which this insurance does not apply. We may, at our discretion, investigate any **pollution condition** and settle any **claim** that may result. But:

- (1) The amount we will pay for damages, **cleanup costs** and Supplementary Payments is limited as described in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**; and
- (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments, settlements, **cleanup costs**, medical expenses or Supplementary Payments under this policy.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

- b. This insurance applies to **bodily injury, property damage or environmental damage** only if:

- (1) The **bodily injury, property damage or environmental damage** is directly caused by a **pollution condition** that:

- (a) Is located on, at, under or migrating from any **non-owned disposal site**;
- (b) Takes place in the **coverage territory**; and
- (c) First commences on or after the Retroactive Date, if any, shown in the Declarations and before the end of the **policy period**;

- (2) A **claim** for damages or **cleanup costs** because of the **bodily injury, property damage or environmental damage** is first made against the **Named Insured**, in accordance with paragraphs f. and g. below, during the **policy period**;

- (3) The **claim** is reported to us in writing during the **policy period** or the Extended Reporting Period we provide for this **COVERAGE** under **SECTION V – EXTENDED REPORTING PERIOD**; and

- (4) Prior to the **policy period**, no insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** and no **responsible employee** knew that the **bodily injury, property damage or environmental damage** had occurred, in whole or in part. If such a listed insured or **responsible employee** knew, prior to the **policy period**, that the **bodily injury, property damage or environmental damage** occurred, then any continuation, change or resumption of such **bodily injury, property damage or environmental damage** during or after the **policy period** will be deemed to have been known prior to the **policy period**.

- c. **Bodily injury, property damage or environmental damage** which occurs during the **policy period** and was not, prior to the **policy period**, known to have occurred by any insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** or any **responsible employee**, includes any continuation, change or resumption of that **bodily injury, property damage or environmental damage** after the end of the **policy period**.

- d. **Bodily injury, property damage or environmental damage** will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** or any **responsible employee**:

- (1) Reports all, or any part, of the **bodily injury, property damage or environmental damage** to us, any other insurer or any governmental authority;

- (2) Receives a written or verbal demand or **claim** for damages or **cleanup costs** because of the **bodily injury, property damage or environmental damage**; or
- (3) Becomes aware by any other means that **bodily injury, property damage or environmental damage** has occurred or has begun to occur.
- e. Damages because of **bodily injury** include damages claimed by any person or organization for care, loss of services or death resulting at any time from **bodily injury**.
- f. A **claim** by a person or organization seeking damages or **cleanup costs** will be deemed to have been made at the earlier of the following times:
 - (1) When notice of such **claim** is received and recorded by any insured or by us, whichever comes first; or
 - (2) When we make settlement in accordance with Paragraph **a.** above.
- g. All **related claims** will be deemed a single **claim** first made on the date on which the first **claim** of the **related claims** was made, regardless of whether that date is before the **policy period**.

If an otherwise covered **claim** is first made against an insured and reported to us during this **policy period**, and provided you subsequently continue to maintain Non-Owned Disposal Site Liability Coverage with us on a continuous, uninterrupted basis, then all **related claims** that are:

- (1) Subsequently made against an insured; and
- (2) Reported to us during one of those continuous, uninterrupted policies;

will be deemed to have been first made and reported to us during this **policy period**, and will be subject to the applicable limits, deductible, terms and conditions of this policy.

All **related pollution conditions** will be deemed to have first commenced on the date, and in the location where, the first **pollution condition** of the **related pollution conditions** commenced.

2. Exclusions

In addition to the exclusions found in **GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)**, this insurance does not apply to any:

a. Aircraft, Auto Or Watercraft

Bodily injury, property damage, environmental damage or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any ownership, maintenance, use or entrustment to others of any aircraft, **auto** or watercraft owned or operated by or rented or loaned to any insured. Use includes operation.

This exclusion applies even if the **claims** against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the **occurrence** which caused the **bodily injury, property damage or environmental damage** involved the ownership, maintenance, use or entrustment to others of any aircraft, **auto** or watercraft that is owned or operated by or rented or loaned to any insured.

b. Claims Brought by Non-Owned Disposal Site Owner or Operator

Claim brought by or on behalf of any business enterprise, organization or entity that is an owner, operator, manager, member, affiliate, successor, sister company, subsidiary, parent company or assignee of a **non-owned disposal site**, for any **pollution condition** that commenced after your waste materials or products were delivered to the **non-owned disposal site**.

COVERAGE PART: PROFESSIONAL SERVICES LIABILITY

COVERAGE G PROFESSIONAL SERVICES LIABILITY

This **COVERAGE** is claims-made and reported and is a **defense within limits coverage**.

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of a **professional services wrongful act** to which this insurance applies. We will have the right and duty to defend the insured against any **suit** seeking those damages. However, we will have no duty to defend the insured against any **suit** seeking damages for a **professional services wrongful act** to which this insurance does not apply. We may, at our discretion, investigate any **professional services wrongful act** and settle any **claim** that may result. But:

- (1) The amount we will pay for damages and Supplementary Payments is limited as described in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**; and
- (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments, settlements, **cleanup costs**, medical expenses or Supplementary Payments under this policy.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

- b. This insurance applies to a **professional services wrongful act** only if:

- (1) The **professional services wrongful act** is committed in the **coverage territory**;
- (2) The **professional services wrongful act** was first committed on or after the Retroactive Date, if any, shown in the Declarations and before the end of the **policy period**;
- (3) A **claim** for damages because of the **professional services wrongful act** is first made against the insured, in accordance with Paragraph **c.** and **d.** below, during the **policy period**; and
- (4) The **claim** is first reported to us in writing during the **policy period** or the Extended Reporting Period we provide for this **COVERAGE** under **SECTION V – EXTENDED REPORTING PERIOD**.

- c. A **claim** by a person or organization seeking damages will be deemed to have been made at the earlier of the following times:

- (1) When notice of such **claim** is received and recorded by any insured or by us, whichever comes first; or
- (2) When we make settlement in accordance with Paragraph **a.** above.

- d. All **related claims** will be deemed a single **claim** first made on the date on which the first **claim** of the **related claims** was made, regardless of whether that date is before the **policy period**.

If a **claim** is first made against an insured and reported to us during this **policy period**, and provided you continue to maintain Professional Services Liability Coverage with us on a continuous, uninterrupted basis, then all **related claims** that are:

- (a) Subsequently made against an insured; and
- (b) Reported to us during one of those continuous subsequent policies;

will be deemed to have been first made and reported to us during this **policy period**, and will be subject to the applicable limits, deductible, terms and conditions of this Policy.

All **related professional services wrongful acts** will be deemed to have been first committed on the date when, and in the location where, the first **professional services wrongful act** of the **related professional services wrongful acts** was committed.

Under no circumstances will more than one policy issued by us provide coverage for the same **professional services wrongful act** or **related professional services wrongful acts**.

2. Exclusions

In addition to the exclusions found in **GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)**, this insurance does not apply to any:

a. Aircraft, Auto Or Watercraft

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any ownership, maintenance, use or entrustment to others of any aircraft, **auto** or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and **transportation operations**.

This exclusion applies even if the **claims** against any insured alleges negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by or on behalf of any insured.

b. Cross Liability – Total

Claim brought by or on behalf of any:

- (1) Insured under this policy;
- (2) Business enterprise, organization or entity that is an owner, operator, manager, member, affiliate, successor, sister company, subsidiary, parent company or assignee of any insured under this policy; or
- (3) Business enterprise, organization or entity of which any insured under this policy is owner, operator, manager, member, affiliate, successor, sister company, subsidiary, parent company or assignee.

c. Damage To Property

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any injury or damage to:

- (1) Property you own, rent or occupy, including but not limited to any costs or expenses incurred by you or any other person, organization or entity for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including but not limited to prevention of injury to a person or damage to another's property;
- (2) Premises you sell, give away or abandon;
- (3) Property loaned to you; or
- (4) Personal property in the care, custody or control of any insured.

d. Damage to Your Work

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any damage to **your work** or any part of **your work**.

e. Discrimination

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any actual or alleged discrimination, humiliation, or harassment, including discrimination, humiliation, or harassment of a sexual nature or involving race, creed, color, age, gender, national origin, religion, disability, marital status, sexual preference, or other classification of any type, nature, or kind.

f. Employer's Liability

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any injury to any present or former **employee** or **executive**

officer of any insured, including but not limited to, wrongful termination, discrimination, or any unfair employment practices.

g. Faulty Workmanship

Cost or expense to repair, replace, withdraw, inspect, investigate, recall, adjust, remove, or dispose of any faulty construction, workmanship or operations, including but not limited to any:

(1) Assembly, fabrication, installation, erection, manufacture or remediation performed; or

(2) Materials, parts or equipment furnished;

in connection with such construction, workmanship or operations.

h. Fiduciary Liability

Actual or alleged violation of any responsibility, duty, or obligation imposed under the Employee Retirement Income Security Act of 1974 or any similar local, state, federal or foreign act, statute, rule, regulation, requirement, ordinance, common law, or other law, including any amendment thereto or any regulation promulgated thereunder.

i. Insurance and Bonds

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any advising or requiring of, or failure to advise or require, or failure to maintain any form of insurance, suretyship or bond, either with respect to any insured or any other person, entity or company.

j. Insured Property

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any insured's ownership, rental, lease, maintenance, operation, use, repair, voluntary or involuntary sale, transfer, exchange, gift, abandonment or condemnation of real or personal property.

k. Products

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving **your product**, or its design, including but not limited to, goods or products manufactured, sold, handled, distributed, altered or repaired by any insured or by others trading under your name, including any container thereof, or any reliance upon a representation or warranty made at any time with respect thereto.

l. Securities Violation

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any actual or alleged violation of the Securities Act of 1933, the Securities Exchange Act of 1934, the Investment Company Act of 1940, the Investment Advisors Act of 1940, any Blue Sky or other securities law, or any similar local, state, federal or foreign act, statute, rule, regulation, requirement, ordinance, common law, or other law, including any amendment thereto or any regulation promulgated thereunder.

m. Violation Of Trade Law

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any actual or alleged violation of any law relating to anti-trust, restraint of trade, unfair or deceptive trade practices, unfair competition, false or deceptive advertising or any other law protecting competition, consumers or privacy.

n. Warranties

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any express warranties or guarantees.

GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)

In addition to the exclusions found under the **COVERAGES**, this insurance does not apply to any:

1. Access Or Disclosure Of Confidential Or Personal Material Or Information

Bodily injury, property damage, personal and advertising injury, environmental damage, professional services wrongful acts or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any access to or disclosure of any person's or organization's confidential or personal information, including:

- a. Patents, trade secrets, processing methods, customer lists;
- b. Financial information, credit card information;
- c. Health information, biometric information; or
- d. Any other type of nonpublic material or information.

This exclusion applies even if damages are claimed for notification costs, credit or identity monitoring expenses, forensic expenses, public relations expenses, data restoration expenses, extortion expenses or any other loss, cost or expense incurred by you or others arising out of any access to or disclosure of any person's or organization's confidential or personal material or information.

2. Contractual Liability

Bodily injury, property damage, personal and advertising injury, environmental damage, professional services wrongful acts or claim for which any insured is obligated to pay damages or **cleanup costs** by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages:

- a. That the insured would have in the absence of the contract or agreement; or
- b. For **bodily injury, property damage or environmental damage**, if such damages were assumed in a contract or agreement that is an **insured contract**, provided the **bodily injury, property damage or environmental damage** occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an **insured contract**, reasonable attorney fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be damages because of **bodily injury, property damage or environmental damage**, provided:
 - (1) Liability to such party for, or for the cost of, that party's defense has also been assumed in the same **insured contract**; and
 - (2) Such attorney fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which damages to which this insurance applies are alleged.

3. Cross Liability

Claim brought by or on behalf of any:

- a. **Named Insured** under this policy;
- b. Business enterprise, organization or entity that is an owner, operator, manager, member, affiliate, successor, sister company, subsidiary, parent company or assignee of any **Named Insured**; or

- c. Business enterprise, organization or entity of which any **Named Insured** is owner, operator, manager, member, affiliate, successor, sister company, subsidiary, parent company or assignee.

4. Cyber Incident

Bodily injury, property damage, personal and advertising injury, environmental damage, professional services wrongful acts or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any **cyber incident**.

5. Damage To Impaired Property Or Property Not Physically Injured

Property damage or environmental damage to impaired property or property that has not been physically injured, arising out of:

- a. A defect, deficiency, inadequacy or dangerous condition in **your product or your work**; or
- b. A delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms.

This exclusion does not apply to the loss of use of other property arising out of sudden and accidental physical injury to **your product or your work** after it has been put to its intended use.

6. Damage To Your Product

Property damage or environmental damage to your product based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving it or any part of it.

7. Damage To Your Work

Property damage or environmental damage to your work based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving it or any part of it and included in the **products-completed operations hazard**.

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.

8. Electronic Data

Damages or **cleanup costs** based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate **electronic data**.

This exclusion does not apply to liability for damages because of **bodily injury**.

9. Employment-Related Practices

Bodily injury, personal and advertising injury or professional services wrongful acts to:

- a. A person arising out of any:
 - (1) Refusal to employ that person;
 - (2) Termination of that person's employment; or
 - (3) Employment-related practices, policies, acts or omissions, such as coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination or malicious prosecution directed at that person.
- b. The spouse, child, parent, brother or sister of that person as a consequence of **bodily injury, personal and advertising injury or professional services wrongful acts** to that person at whom any of the employment-related practices described in Paragraphs (1), (2), or (3) above is directed.

This exclusion applies:

- (a) Whether the injury-causing event described in Paragraphs (1), (2), or (3) above occurs before employment, during employment or after employment of that person;
- (b) Whether the insured may be liable as an employer or in any other capacity; and
- (c) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

10. Expected Or Intended Injury

Bodily injury, property damage or environmental damage expected or intended from the standpoint of the insured.

Solely with respect to **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**, this exclusion does not apply to **bodily injury** resulting from the use of reasonable force to protect persons or property.

11. Fines, Penalties and Assessments

- a. Fines, penalties or assessments;
- b. Punitive, exemplary or multiplied damages, unless allowed by law; or
- c. Cost of injunctive relief based upon or arising out of non-compliance with any statute, regulation, ordinance or administrative complaint.

12. Insured's Voluntary Costs Or Expenses

Costs or expenses, including **cleanup costs**, incurred by any insured for materials or services performed for any insured, unless all insureds have our prior written consent to incur such costs or expenses.

This exclusion does not apply to **emergency response costs** incurred by the **Named Insured** in responding to a **pollution condition**.

13. Intellectual Property

Actual or alleged infringement by an insured of copyright, trade dress, trade secret, trade name, trademark or patent; unfair competition or piracy; misappropriation or wrongful taking of concepts; or violation or infringement of any other intellectual property right.

14. Intentional Acts

Bodily injury, property damage, personal and advertising injury, environmental damage, professional services wrongful acts or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any:

- a. Criminal, dishonest, intentional, fraudulent, malicious, willful, deliberate or knowingly wrongful conduct, on the part of, or at the direction of, the insured; or
- b. Criminal, dishonest, intentional, fraudulent, willful, deliberate or knowingly wrongful non-compliance with any:
 - (1) Common, statutory or constitutional law; or
 - (2) Order, regulation, administrative complaint, notice of violation, executive order, notice letter, or instruction by or on behalf of any governmental authority.

15. Known Conditions And Incidents

Claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any **pollution condition**, **professional services wrongful act**, act, error, omission, incident, offense or **occurrence** if, prior to the inception date of the **policy period**, any **responsible employee** knew or could have reasonably foreseen that such **pollution condition**, **professional services wrongful act**, act, error, omission, incident, offense or **occurrence** could give rise to a **claim**.

16. Nuclear

Bodily injury, property damage, personal and advertising injury, environmental damage, professional services wrongful acts or claim:

- a. With respect to which an insured under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or
- b. Arising out of the **hazardous properties of nuclear material** and with respect to which:
 - (1) Any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof; or
 - (2) The insured is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.
- c. Arising out of the **hazardous properties of nuclear material**, if:
 - (1) The **nuclear material**:
 - (a) Is at any **nuclear facility** owned by, or operated by or on behalf of, an insured; or
 - (b) Has been discharged or dispersed therefrom;
 - (2) The **nuclear material** is contained in **spent fuel** or **nuclear waste** at any time possessed, handled, used, processed, stored, transported or disposed of, by or on behalf of an insured; or
 - (3) The **bodily injury, property damage, environmental damage, professional services wrongful act or claim** arises out of the furnishing by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any **nuclear facility**, but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion (3) applies only to **property damage** to such **nuclear facility** and any property thereat.

For the purposes of this exclusion, **property damage** and **environmental damage** includes all forms of radioactive contamination of property.

17. Outside Capacity

Claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any insured's services in the capacity of an **executive officer**, director, partner, trustee, **employee** or other worker of a business enterprise not listed as a **Named Insured** in the Declarations.

18. Previously Made Claims

Claim first made before the **policy period** or any **related claims** that include any **claim** first made before the **policy period**.

19. Prior Notice

Bodily injury, property damage, personal and advertising injury, environmental damage, professional services wrongful acts, pollution condition or claim reported under any prior policy of which this policy is a renewal or replacement or succeeds in time, whether or not such prior policy afforded coverage for such **bodily injury, property damage, personal and advertising injury, environmental damage, professional services wrongful act, pollution condition or claim** or whether or not such prior policy was issued by us.

20. Recording And Distribution Of Material Or Information In Violation Of Law

Bodily injury, property damage, personal and advertising injury, professional services wrongful acts or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any action or omission that violates or is alleged to violate:

- a. The Telephone Consumer Protection Act (TCPA), including any amendment of or addition to such law;
- b. The CAN-SPAM Act of 2003, including any amendment of or addition to such law;
- c. The Fair Credit Reporting Act (FCRA), and any amendment of or addition to such law, including the Fair and Accurate Credit Transaction Act (FACTA); or
- d. Any federal, state or local statute, ordinance or regulation, other than the TCPA, CAN-SPAM Act of 2003 or FCRA and their amendments and additions, that addresses, prohibits, or limits the printing, dissemination, disposal, collecting, recording, sending, transmitting, communicating or distribution of material or information.

21. Separately Insured Project

Bodily injury, property damage, personal and advertising injury, environmental damage, professional services wrongful acts or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any project or contract if the **Named Insured's** operations were at any time included within a project-specific insurance policy issued by us or another insurance company or a **consolidated insurance program** for a project or contract in which you are, or were, enrolled.

This exclusion does not apply to any project that is specifically scheduled on this policy by an endorsement issued by us and made a part of this policy.

22. War

Bodily injury, property damage, personal and advertising injury, environmental damage, professional services wrongful acts or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any:

- a. War, including undeclared or civil war;
- b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

23. Workers' Compensation And Similar Laws

Obligation of any insured under any workers' compensation, disability benefits or unemployment compensation law or any similar law.

Exclusions **6.**, **7.**, **22.**, and **23.** do not apply to damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner. A separate limit of insurance applies to this coverage as described in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE.**

SUPPLEMENTARY PAYMENTS

1. We will pay, with respect to any **claim** we investigate or settle, or we defend if the **claim** is a **suit**:
 - a. All expenses we incur.
 - b. Up to \$250 for cost of bail bonds required because of accidents or traffic law violations arising out of the use of any vehicle to which **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** applies. We do not have to furnish these bonds.
 - c. The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.
 - d. All reasonable expenses incurred by the insured at our request to assist us in the investigation or defense of the **claim**, including actual loss of earnings up to \$250 a day because of time off from work.
 - e. All court costs taxed against the insured in the **suit**. However, these payments do not include attorneys' fees or attorneys' expenses taxed against the insured.
 - f. Prejudgment interest awarded against the insured on that part of the judgment we pay. If we make an offer to pay the applicable limit of insurance, we will not pay any prejudgment interest based on that period of time after the offer.
 - g. All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

Solely with respect to **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and **COVERAGE – PERSONAL AND ADVERTISING INJURY LIABILITY**, these payments will not reduce the limits of insurance shown in the Declarations. All other **COVERAGES** are **defense within limits coverages** and under those **COVERAGES** these payments will reduce the limits of insurance shown in the Declarations.

2. Solely with respect to all **COVERAGES** under **COVERAGE PART: COMMERCIAL GENERAL LIABILITY** and **COVERAGE PART: CONTRACTORS ENVIRONMENTAL LIABILITY**, if we defend an insured against a **suit** and an indemnitee of the insured is also named as a party to the **suit**, we will defend that indemnitee if all of the following conditions are met:
 - a. The **suit** against the indemnitee seeks damages for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an **insured contract**;
 - b. This insurance applies to such liability assumed by the insured;
 - c. The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured in the same **insured contract**;
 - d. The allegations in the **suit** and the information we know about the **occurrence** are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitee;
 - e. The indemnitee and the insured ask us to conduct and control the defense of that indemnitee against such **suit** and agree that we can assign the same counsel to defend the insured and the indemnitee; and
 - f. The indemnitee:
 - (1) Agrees in writing to:
 - (a) Cooperate with us in the investigation, settlement or defense of the **suit**;
 - (b) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the **suit**;
 - (c) Notify any other insurer whose coverage is available to the indemnitee; and

(d) Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and

(2) Provides us with written authorization to:

(a) Obtain records and other information related to the **suit**; and

(b) Conduct and control the defense of the indemnitee in such **suit**.

So long as the above conditions are met, attorneys' fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as Supplementary Payments. Notwithstanding the provisions of Paragraph b. in Exclusion 2. Contractual Liability of the **GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)**, such payments will not be deemed to be damages and will not reduce the limits of insurance shown in the Declarations for **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and **COVERAGE - PERSONAL AND ADVERTISING INJURY LIABILITY**. However, such payments will be deemed to be damages or **cleanup costs** and will reduce the limits of insurance shown in the Declarations for the **defense within limits coverages**.

Our obligation to defend an insured's indemnitee and to pay for attorneys' fees and necessary litigation expenses as Supplementary Payments ends when we have used up the applicable limit of insurance in the payment of judgments or settlements or the conditions set forth above, or the terms of the agreement described in Paragraph f. above, are no longer met.

3. If we initially defend any insured or pay for any insured's defense but later determine that none of the **claims**, for which we provided a defense or Supplementary Payments, are covered under this insurance, we have the right to reimbursement for the Supplementary Payments we have incurred.

The right to reimbursement under this provision will only apply to the Supplementary Payments we have incurred after we notify you in writing that there may not be coverage and that we are reserving our rights to terminate the defense or the payment of Supplementary Payments and to seek reimbursement for Supplementary Payments.

SECTION II – WHO IS AN INSURED

1. Who is an Insured

a. If you are designated in the Declarations as:

- (1) An individual, you and your spouse are insureds, but only with respect to the conduct of a business of which you are the sole owner.
- (2) A partnership or joint venture, you are an insured. Your members, your partners, and their spouses are also insureds, but only with respect to the conduct of your business.
- (3) A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.
- (4) An organization other than a partnership, joint venture or limited liability company, you are an insured. Your **executive officers** and directors are insureds, but only with respect to their duties as your officers or directors. Your stockholders are also insureds, but only with respect to their liability as stockholders.
- (5) A trust, you are an insured. Your trustees are also insureds, but only with respect to their duties as trustees.

b. Each of the following is also an insured:

- (1) Your **volunteer workers** only while performing duties related to the conduct of your business, or your **employees**, other than either your **executive officers** (if you are an organization other than a partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business. However, none of these **employees** or **volunteer workers** are insureds for:

(a) **Bodily injury, personal and advertising injury or environmental damage:**

- i. To you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), to a co-**employee** while in the course of his or her employment or performing duties related to the conduct of your business, or to your other **volunteer workers** while performing duties related to the conduct of your business;
- ii. To the spouse, child, parent, brother or sister of that co-**employee** or **volunteer worker** as a consequence of Paragraph (a)i. above;
- iii. For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in Paragraphs (a)i. or ii. above; or
- iv. Arising out of his or her providing or failing to provide professional health care services.

(b) **Property damage or environmental damage** to property:

- i. Owned, occupied or used by; or
- ii. Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by:

you, any of your **employees**, **volunteer workers**, any partner or member (if you are a partnership or joint venture), or any member (if you are a limited liability company).

- (2) Any person (other than your **employee** or **volunteer worker**), or any organization while acting as your real estate manager.

- (3) Any person or organization having proper temporary custody of your property if you die, but only:

(a) With respect to liability arising out of the maintenance or use of that property; and

(b) Until your legal representative has been appointed.

- (4) Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this policy.

- (5) Any person or organization that has at least a 50% controlling interest in you but only with respect to **bodily injury, property damage, personal and advertising injury or environmental damage or professional services wrongful acts** caused by you arising out of their financial control of you.

- (6) Any person or organization that is a grantor of franchise to you, but only with respect to their liability as a grantor of franchise to you.

- c. Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a **Named Insured** if there is no other similar insurance available to that organization. However:

- (1) Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the **policy period**, whichever is earlier;

- (2) Coverage does not apply to any:

- (a) **Bodily injury, property damage or environmental damage** that occurred;
- (b) **Personal and advertising injury** arising out of an offense committed; or
- (c) **Professional services wrongful act** committed;

before you acquired or formed the organization.

No person or organization is an insured with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a **Named Insured** in the Declarations.

SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE

1. Limits of Insurance

- a. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:
 - (1) Insureds;
 - (2) **Claims** made or brought;
 - (3) Persons or organizations making or bringing **claims**; or
 - (4) **Covered locations**.
- b. The Policy Aggregate Limit shown on the Declarations is the most we will pay for the sum of all:
 - (1) Damages, medical expenses and **cleanup costs** under all **COVERAGES** under this policy; and
 - (2) Supplementary Payments under all **defense within limits coverages** under this policy.
- c. Subject to Paragraph **b.** above, the General Aggregate Limit is the most we will pay for the sum of all:
 - (1) Medical expenses under **COVERAGE – MEDICAL PAYMENTS**; and
 - (2) Damages under **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**, except damages because of **bodily injury** or **property damage** included in the **products-completed operations hazard**;
 - (3) Damages under **COVERAGE – PERSONAL AND ADVERTISING INJURY LIABILITY**.
- d. Subject to Paragraph **b.** above, the Products-Completed Operations Aggregate Limit is the most we will pay under **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** for the sum of all damages because of **bodily injury** and **property damage** included in the **products-completed operations hazard**.
- e. Subject to Paragraph **c.** above, the Personal and Advertising Injury Limit is the most we will pay under **COVERAGE – PERSONAL AND ADVERTISING INJURY LIABILITY** for the sum of all damages because of all **personal and advertising injury** sustained by any one person or organization.
- f. Subject to Paragraph **c.** or **d.** above, whichever applies, the Each Occurrence Limit is the most we will pay for the sum of all:
 - (1) Damages under **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**; and
 - (2) Medical expenses under **COVERAGE – MEDICAL PAYMENTS**;

because of all **bodily injury** and **property damage** arising out of any one **occurrence**.

- g. Subject to Paragraph f. above, the Damage To Premises Rented To You Limit is the most we will pay under **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** for the sum of all damages because of **property damage** to any one premises, while rented to you, or in the case of damage by fire, while rented to you or temporarily occupied by you with permission of the owner.
- h. Subject to Paragraph f. above, the Medical Expense Limit is the most we will pay under **COVERAGE – MEDICAL PAYMENTS** for the sum of all medical expenses because of **bodily injury** sustained by any one person.
- i. Subject to Paragraph b. above, the Each Professional Services Wrongful Act Limit is the most we will pay for the sum of all damages and Supplementary Payments for all **claims** and **related claims** arising out of any one **professional services wrongful act**, including all **related professional services wrongful acts**.
- j. Subject to Paragraph b. above, the Each Pollution Condition Limit shown for each **COVERAGE** within **COVERAGE PART: CONTRACTORS ENVIRONMENTAL LIABILITY** is the most we will pay for the sum of all:
 - (1) Damages and **cleanup costs** under each such **COVERAGE** in **COVERAGE PART: CONTRACTORS ENVIRONMENTAL LIABILITY**, including damages and **cleanup costs** because of **environmental damage** included in the **products-completed operations hazard**; and
 - (2) Supplementary Payments under each such **COVERAGE** that is a **defense within limits coverage** in **COVERAGE PART: CONTRACTORS ENVIRONMENTAL LIABILITY**;

arising out of any one **pollution condition**, including all **related pollution conditions**.

The Limits of Insurance of this policy apply to the entire **policy period**, including any extension of the **policy period** that occurs after the effective date shown on the Declarations.

2. Deductible

- a. The Limits of Insurance and Supplementary Payments apply in excess of the deductible amounts shown on the Declarations or the SCHEDULE of any endorsements issued by us and made a part of this policy. The deductibles shall be paid by the **Named Insured**.
- b. If the deductible amount indicated on the Declarations or the SCHEDULE of any endorsements issued by us and made a part of this policy is on an “each claim” basis, the deductible applies to Supplementary Payments and:
 - (1) All damages and **cleanup costs** sustained by any one person because of **bodily injury**, **property damage** or **environmental damage** as the result of any one **occurrence** or **pollution condition**, including all **related pollution conditions**;
 - (2) All damages sustained by any one person because of **personal and advertising injury**; or
 - (3) All damages sustained by any one person because of any one **professional services wrongful act**, including all **related professional services wrongful acts**.

If damages are for care, loss of services or death resulting at any time from **bodily injury**, a separate deductible amount will be applied to each person making a **claim** for such damages.

With respect to **claims** for **property damage**, **personal and advertising injury**, **environmental damage** and **professional services wrongful acts**, person includes an organization.

- c. If the deductible indicated on the Declarations or the SCHEDULE of any endorsements issued by us and made a part of this policy is on an “each occurrence” basis, the deductible applies to Supplementary Payments and all damages because of **bodily injury** or **property damage** as the result of any one **occurrence**, regardless of the number of persons or organizations who sustain damages because of that **occurrence**.

- d. If the deductible indicated on the Declarations or the SCHEDULE of any endorsements issued by us and made a part of this policy is on an “each pollution condition” basis, the deductible applies to Supplementary Payments and all damages and **cleanup costs** because of **bodily injury, property damage or environmental damage** as the result of any one **pollution condition**, including all **related pollution conditions**, regardless of the number of persons or organizations who sustain damages or **cleanup costs** because of that **pollution condition**.
- e. The terms of this insurance, including those with respect to:
 - (1) Our right and duty to defend the insured against any **suits**; and
 - (2) Your duties in the event of an **occurrence or claim**;apply irrespective of the application of the deductible amount.
- f. We may pay any part or all of the deductible amount to effect settlement of any **claim** and, upon notification of the action taken, you shall promptly reimburse us for such part of the deductible amount as has been paid by us. In the event you do not promptly reimburse us for any deductible amount we have advanced, any costs incurred by us in the collection of those amounts shall be added to the deductible amounts due us including, but not limited to, collection agency fees, attorney fees and interest.
- g. If the **Named Insured** and the company agree to use **mediation** as a means to resolve a **claim** made during the **policy period** against the insured prior to any court-ordered **mediation** or other form of mandatory dispute resolution, and if such **claim** is resolved as a direct result of and during such **mediation**, the insured’s deductible stated in the Declarations shall be reduced by 50% subject to a maximum reduction of \$25,000. We shall reimburse the **Named Insured** for any such reimbursable deductible payments made prior to the **mediation** as soon as practical after the conclusion of such **mediation**.

SECTION IV – CONDITIONS

1. Assignment

No assignment of interest under this policy shall bind us without our prior written consent issued as a written endorsement issued by us and made a part of this policy. Such written consent shall not be unreasonably withheld.

2. Authorization, Changes and Notices

This policy contains all the agreements between us and all insureds concerning the insurance afforded by this policy. The first **Named Insured** is authorized to make changes in the terms of this policy with our consent issued as a written endorsement to form a part of this policy. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

The first **Named Insured** will act on behalf of all of the insureds with respect to:

- a. Giving or receiving any notices under this policy including notices of cancellation and non-renewal;
- b. Payment or returns of premiums;
- c. Receiving any endorsements issued by us forming a part of this policy; and
- d. Exercising or declining to exercise the option to purchase any optional extended reporting period.

3. Bankruptcy

Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations. However, such bankruptcy or insolvency of an insured or of the insured's estate shall not increase our obligations including, but not limited to, those with respect to any deductible.

4. Cancellation or Non-Renewal

- a. The first **Named Insured** shown on the Declarations may cancel this policy by mailing or delivering to us written notice of a cancellation date no later than the Expiration Date of this policy. A request by a premium finance company to cancel this policy for non-payment of premium shall be deemed a request by the first **Named Insured** to cancel this policy. The earned premium will be computed in accordance with standard short rate tables and procedure, and will not be less than the Minimum Earned Premium shown on the Declarations.
- b. We may cancel this policy by mailing or delivering to the first **Named Insured** shown on the Declarations written notice of cancellation at least sixty (60) calendar days before the effective date of cancellation; or ten (10) calendar days in the event of cancellation for non-payment of premium. We will send the first **Named Insured** shown on the Declarations any premium refund due. If we cancel, the refund will be computed in accordance with standard pro rata tables and procedure, and will not be less than the Minimum Earned Premium shown on the Declarations.
- c. We will mail or deliver our notice of cancellation stating the effective date of cancellation to the first **Named Insured's** mailing address shown on the Declarations. The **policy period** will end on that date.
- d. If we cancel this policy due to failure of **Named Insured(s)** to comply with the terms and conditions under this policy, any **Named Insured** shall have thirty (30) calendar days from the date of the notice of cancellation to comply with the terms and conditions. If such **Named Insured's** compliance is satisfactory to us, we shall rescind the notice of cancellation in writing and the policy shall remain in force.
- e. We will not be required to renew this policy upon its expiration. If we elect not to renew this policy, we will mail or deliver to the first **Named Insured** shown on the Declarations written notice of nonrenewal at least sixty (60) calendar days prior to the Expiration Date of this policy. Any offer of renewal on terms involving a change of retention, premium, limit of liability, or other terms and conditions shall not constitute, nor be construed as, a failure or refusal by us to renew this policy.
- f. If notice is mailed, proof of mailing will be sufficient proof of notice.

5. Defined Terms and Phrases

Words and phrases that appear in quotation marks or in bold font have special meaning. Refer to **SECTION VI – DEFINITIONS**.

6. Headings

The descriptions in the headings and sub-headings of this policy are solely for convenience, and form no part of the terms and conditions of coverage.

7. Independent Counsel

In the event an insured is entitled by law to select independent counsel to represent or defend an insured, the attorney's fees and all other litigation expenses incurred by us shall be limited to the rates we would pay to counsel normally retained by us in the ordinary course of business when defending similar **claims** in the jurisdiction where the **claim** arose or is being defended and will have no obligation to pay in excess of those amounts. To the extent permitted by law, we may require such counsel to:

- a. Maintain an office in the jurisdiction in which the **claim** is pending;
- b. Have certain minimum experience qualifications and competency to defend the **claim**;
- c. Adhere to our litigation management guidelines in effect when the **claim** is assigned;
- d. Maintain acceptable errors and omissions insurance coverage; and
- e. Agree, in writing, to respond in a timely manner to our requests for information regarding the **claim**.

An insured may, at any time, waive in writing any right it may have to select independent counsel.

8. Legal Action Against Us

No person or organization has a right under this policy:

- a. To join us as a party or otherwise bring us into a **suit** asking for damages or **cleanup costs** from an insured; or
- b. To sue us on this policy unless all of its terms have been fully complied with.

A person or organization may sue us to recover an agreed settlement or a final judgment against an insured; but we will not be liable for damages or cleanup costs that are not payable under the terms of this policy or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

9. Other Insurance For Coverages In The Commercial General Liability Coverage Part

If other valid and collectible insurance is available to the insured for a loss we cover under any **COVERAGE** in **COVERAGE PART: COMMERCIAL GENERAL LIABILITY**, our obligations are limited as follows:

a. Primary Insurance

This insurance is primary except when Paragraph **b.** below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in Paragraph **c.** below.

b. Excess Insurance

(1) This insurance is excess over:

(a) Any of the other insurance, whether primary, excess, contingent or on any other basis:

- i. That is Fire, Extended Coverage, Builder's Risk, Installation Risk or similar coverage for **your work**;
- ii. That is Fire insurance for premises rented to you or temporarily occupied by you with permission of the owner;
- iii. That is insurance purchased by you to cover your liability as a tenant for **property damage** to premises rented to you or temporarily occupied by you with permission of the owner;
- iv. If the loss arises out of the maintenance or use of aircraft, **autos** or watercraft to the extent not subject to Exclusion **a.** of **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**; or
- v. That is Auto insurance or similar coverage for a loss arising out of a **pollution condition** during **transportation operations**.

(b) Any other insurance available to you, whether primary, excess, contingent or on any other basis, covering liability for damages arising out of the premises or operations, or the products and completed operations, for which you have been added as an additional insured.

(2) When this insurance is excess, we will have no duty under any **COVERAGE** to defend the insured against any **suit** if any other insurer has a duty to defend the insured against that **suit**. If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

(3) When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

(a) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and

(b) The total of all deductible and self-insured amounts under all that other insurance.

- (4) We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of the applicable **COVERAGE**.

c. Method Of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

10. Other Insurance For All Coverages Other Than Coverages In The Commercial General Liability Coverage Part

- a. If other valid and collectible insurance is available to the insured for a **claim** or loss we cover under any **COVERAGE** in this policy other than the **COVERAGES** in **COVERAGE PART: COMMERCIAL GENERAL LIABILITY**, the insurance afforded by this policy shall apply excess over, and will not contribute with, any other insurance, whether primary, excess, contingent or on any other basis, unless such other insurance is specifically written to be excess insurance over this policy. The insured shall promptly, at our request, provide us with copies of all such policies or documentation.
- b. When this insurance is excess over other insurance, we will have no duty under any **COVERAGE** to defend the insured against any **claim** or loss if any other insurer has a duty to defend the insured against that **claim** or loss. If no other insurer defends, and we do, we will be entitled to the insured's rights against all those other insurers.
- c. If it is determined that both this insurance and other insurance apply to any **claim** or loss on the same basis, whether primary, excess, or contingent, we will share as follows:
- (1) If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the **claim** or loss remains, whichever comes first.
- (2) If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

11. Premium and Audit

- a. We will compute all premiums for this policy in accordance with our rules and rates.
- b. This policy is subject to a minimum earned premium. The minimum earned premium is calculated as follows:
- (1) The total policy period as shown on the policy Declarations, plus
- (2) Any premium adjustment by endorsements, plus
- (3) Any additional premium developed by audit.
- c. If a rate is shown on the Declarations then the final premium shall be subject to audit. At the close of each audit period we will compute the policy premium for that period and send notice to the first **Named Insured**. The bill will indicate the due date for audit. Failure to pay the audit premium due may subject this policy, or any in-force policy of yours, to cancellation for non-payment of premium.
- (1) If the policy premium computed as a result of an audit is less than the total policy premium shown on the Declarations, the total policy premium shown on the Declarations is the minimum premium for the

policy period and is not subject to adjustment.

- (2) If the policy premium computed as a result of an audit is greater than the total policy premium shown on the Declarations, then a Premium Audit Statement will be sent to the first **Named Insured**. The additional premium amount shown on the Premium Audit Statement is due and payable to us upon receipt by the first **Named Insured**.
- d. You must keep records of the information we need for premium computation and send us copies upon request.
- e. We may examine and audit your books and records as they relate to this policy at any time during the **policy period** and up to three years afterward.

12. Representation and Incorporation of the Application

By accepting this policy you represent that the particulars and statements contained in the applications, questionnaires and any other materials submitted to us by you or someone acting on your behalf are true, accurate and complete and you agree that:

- a. This policy is issued and continued in force by us in reliance upon the truth of such representations;
- b. Those particulars and statements are based upon the representations you made to us; and
- c. Application, questionnaire and any other materials submitted to us are incorporated in and form a part of this policy.

In the event of any material untruth, misrepresentation or omission in connection with any of the particulars or statements in the application, this policy shall be void.

13. Separation of Insureds

Except with respect to the limits of insurance, and any rights or duties specifically assigned in this policy to the **Named Insured**, this insurance applies:

- a. As if each **Named Insured** were the only **Named Insured**; and
- b. Separately to each insured against whom a **claim** is made or brought.

14. Transfer of Rights of Recovery Against Others To Us

If any insured has rights to recover all or part of any payment we have made under this policy, those rights are transferred to us. Such insured must do nothing to impair those rights. At our request, such insured will bring suit or transfer those rights to us and help us enforce them. Any recovery will be paid first to us until all amounts we have spent on a **claim** have been reimbursed. Such insured expressly waives the right to be made whole by any such recovery.

15. Inspections and Surveys

- a. We have the right to make inspections and surveys at any time, give you reports on the conditions we find, and recommend changes.
- b. We are not obligated to make any inspections, surveys, reports or recommendations, and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. We do not warrant that conditions are safe or healthful or comply with laws, regulations, codes or standards.

16. Transfer of Your Rights and Duties Under This Policy

Your rights and duties under this policy may not be transferred without our prior written consent, except in the case of death of an individual **Named Insured**.

If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative. Until your legal representative is appointed, anyone having proper temporary custody of your property will have your rights.

17. Duties In The Event of an Occurrence, Offense or Claim

a. You must see to it that we are notified as soon as practicable of an:

- (1) **Occurrence**, offense or **pollution condition**; or
- (2) **Professional services wrongful act**, incident, circumstance or situation;

which may result in a **claim** or cause an insured to incur **emergency response costs** or other **cleanup costs**.

b. To the extent possible, notice should include:

- (1) How, when and where the **occurrence**, offense, **pollution condition**, **professional services wrongful act**, incident, circumstance or situation took place;
- (2) The names and addresses of any injured persons and witnesses; and
- (3) The nature and location of any injury or damage arising out of the **occurrence**, offense, **pollution condition**, **professional services wrongful act**, incident, circumstance or situation.

c. If a **claim** is made or **suit** is brought against any insured, you must:

- (1) Immediately record the specifics of the **claim** or **suit** and the date received; and
- (2) Notify us as soon as practicable.

You must see to it that we receive written notice of the **claim** or **suit** as soon as practicable.

d. You and any other involved insured must:

- (1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the **claim** or **suit**;
- (2) Authorize us to obtain records and other information;
- (3) Cooperate with us in the investigation or settlement of the **claim** or the defense if the **claim** is a **suit**; and
- (4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of injury or damage to which this insurance may also apply.

e. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

Paragraph e. does not apply to **emergency response costs** incurred by the insured responding to a **pollution condition** or **professional services wrongful act**. The insured shall notify us as soon as practical of all information concerning the **emergency response costs**, including but not limited to:

- (1) How, when and where the **pollution condition** or **professional services wrongful act** took place;
- (2) The names and addresses of any witnesses; and
- (3) Any available field reports and notes, analytical laboratory data, expert reports, investigations, invoices, regulatory notifications or correspondence and any other documentation relating to the **emergency response costs**.

18. Two Or More Coverages or Policies

If we have accepted coverage for a **claim** or loss under any one **COVERAGE** in this policy, then such **claim** or loss will not be covered under any other **COVERAGE** in this policy or any other policy issued by us or any company affiliated with us. If more than one **COVERAGE** in this policy applies to the same **claim** or loss, or a **COVERAGE** in this policy and a **COVERAGE** in another policy issued by us or any company affiliated with us applies to the same **claim** or loss, the aggregate maximum Limit of Insurance under all such **COVERAGES** and policies shall not exceed the highest applicable Limit of Insurance under any one **COVERAGE**. The Deductible or Self-Insured Retention applicable under the **COVERAGE** with the highest applicable Limit of Insurance shall apply to such **claim** or loss. If the applicable limits are the same for all **COVERAGES**, the lowest applicable Deductible or Self-Insured Retention shall apply to such **claim** or loss.

This condition does not apply to any **COVERAGE** or policy issued by us or any affiliated company specifically to apply as excess insurance over this policy.

SECTION V – EXTENDED REPORTING PERIOD

This section only applies to insurance provided under the following **COVERAGES** of **SECTION I – COVERAGES**:

COVERAGE – NON-OWNED DISPOSAL SITE LIABILITY
COVERAGE – PROFESSIONAL SERVICES LIABILITY

1. Extended Reporting Period

a. The Extended Reporting Periods do not:

- (1) Extend the **policy period** or change the scope of coverage provided; or
- (2) Reinstate or increase the Limits of Insurance; or
- (3) Apply to **claims** that are covered under any subsequent insurance you purchase, or that would be covered but for exhaustion of the amount of insurance applicable to such **claims**.

b. The **Named Insured** shall be entitled to an Extended Reporting Period set forth in Paragraphs **c.** and **d.** below only if:

- (1) The policy is cancelled or not renewed for any reason except fraud on the part of any insured or non-payment of premium; or
- (2) You do not purchase coverage to replace coverage provided under this policy; or
- (3) We renew or replace claims-made coverages in this policy with coverages that:
 - (a) Have a Retroactive Date later than the date shown in the Declarations of this policy; or
 - (b) Apply to **bodily injury, property damage, personal and advertising injury, environmental damage or professional services wrongful acts** on an occurrence basis.

c. Automatic Extended Reporting Period

Subject to **b.** above, the **Named Insured** shall be entitled to a period of ninety (90) calendar days from the end of the **policy period** to report **claims** to us which are made by or against the **Named Insured** provided the **bodily injury, property damage, environmental damage, pollution condition(s), professional services wrongful act(s)**, whichever is required for purposes of the applicable **COVERAGE'S** Retroactive Date, first took place on or after the Retroactive Date and before the end of the **policy period**. This Automatic Extended Reporting Period may not be cancelled and does not require the payment of additional premium. This Automatic Extended Reporting Period shall be included within the Optional Extended Reporting Period if such is purchased.

d. Optional Extended Reporting Period

(1) Subject to **b.** above, upon the payment of additional premium, the **Named Insured** shall have the option to extend the period during which a **claim** can be made by or against the **Named Insured** and reported to us provided the **bodily injury, property damage, environmental damage, pollution condition(s)** or **professional services wrongful act(s)**, whichever is required for purposes of the applicable **COVERAGE'S** Retroactive Date, first took place on or after the Retroactive Date and before the end of the **policy period**.

(2) The additional premium for the Optional Extended Reporting Period will not exceed:

(a) 100% of the total policy premium for a nine (9) month Optional Extended Reporting Period; or

(b) 150% of the total policy premium for a twenty-one (21) month Optional Extended Reporting Period;
or

(c) 200% of the total policy premium for a thirty-three (33) month Optional Extended Reporting Period.

(3) The **Named Insured's** right to purchase the Optional Extended Reporting Period must be exercised by providing us written notice no later than thirty (30) calendar days after the cancellation or expiration date of this policy. The written notice must indicate the total Optional Extended Reporting Period desired and include payment of premium for such period.

If such notice and the premium are not mailed to us within such thirty (30) calendar days, then the **Named Insured** shall not be entitled to purchase an Optional Extended Reporting Period at a later date.

(4) The purchase of any Optional Extended Reporting Period shall be scheduled to this policy by endorsement issued by us and made a part of this policy and the entire premium shall be deemed fully earned. Once all premium owed under this policy is paid in full, the optional extended reporting period may not be cancelled.

SECTION VI – DEFINITIONS

1. **Advertisement** means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:

a. Notices that are published include material placed on the Internet or on similar electronic means of communication; and

b. Regarding websites, only that part of a website that is about your goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.

2. **Auto** means:

a. A land motor vehicle, trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment; or

b. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the state where it is licensed or principally garaged.

However, **auto** does not include **mobile equipment**.

3. **Bodily injury** means:

a. Bodily injury, sickness, disease, or illness sustained by a person, including death resulting from any of these at any time, and any accompanying medical or environmental monitoring; and

b. Mental anguish, emotional distress, or mental illness if the mental anguish, emotional distress or mental illness results from such bodily injury, sickness or disease at any time.

4. **Carrier** means a third-party person or entity, other than the insured, who:
- a. Is licensed in the business of transporting for hire goods, products or waste; and
 - b. Is in compliance with all laws, regulations, statutes, and ordinances, including but not limited to those issued by the US Department of Transportation, the US Environmental Protection Agency, or any state, provincial, municipal or other local entity having jurisdiction over such **carrier**.
5. **Claim** means a written demand for money or services, **suit**, or the written threat to initiate a **suit** based on actual or alleged liability on the part of an insured.
6. **Cleanup costs** means those reasonable and necessary expenses, including **restoration costs**, incurred in order to investigate, test, monitor, contain, abate, remediate, neutralize, clean, or dispose of soil, groundwater, surface water, or other contaminated media as a result of **environmental damage** but only:
- a. To the extent required by applicable **environmental law**;
 - b. In absence of Paragraph **a.** above, to the extent recommended in writing by an **environmental professional**; or
 - c. For expenses that have been actually incurred by a government or any political subdivision within Paragraph **a.** of the Definition of **coverage territory**.

Cleanup costs do not include:

- a. Damages because of **property damage**; or
 - b. Expenses incurred by the insured for materials supplied or services performed by the insured unless the insured has our written consent prior to incurring such expenses, except that such consent shall not be required for **emergency response costs**.
7. **Consolidated insurance program** means a centralized insurance program of any kind under which the property owner, prime contractor, project manager or owner of the construction project obtains insurance on behalf of most or all contractors or subcontractors performing work on the project. **Consolidated insurance program** includes any wrap-up, Owners and Contractors Protective Insurance Policy (OCP), Owner Controlled Insurance Program (OCIP), Contractor Controlled Insurance Program (CCIP) or similar insurance program.
8. **Coverage territory** means:
- a. The United States of America (including its territories and possessions), Puerto Rico and Canada;
 - b. International waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in Paragraph **a.** above; or
 - c. All other parts of the world if the injury or damage arises out of:
 - (1) Goods or products made or sold by you in the territory described in Paragraph **a.** above;
 - (2) The activities of a person whose home is in the territory described in Paragraph **a.** above, but who is outside the **coverage territory** for a short time on your business; or
 - (3) **Personal and advertising injury** offenses that take place through the Internet or similar electronic means of communication
- provided the insured's responsibility to pay damages or **cleanup costs** is determined in a **suit** on the merits in the territory described in Paragraph **a.** above or in a settlement we agree to.
9. **Covered location** means real property owned, leased, rented, or operated by an insured.
Covered location does not include:

- a. A **job site**; or
 - b. Real property temporarily rented, leased or occupied by the **Named Insured** during the course of performing **covered operations** for a specific project.
- 10. Covered operations** means **your work**, but only if described in your application and performed for a third party by you or on your behalf. **Covered operations** does not include any work or operations performed at a **covered location**.
- 11. Cyber incident** means any:
- a. Unauthorized access to or use of any computer system.
 - b. Malicious code, virus or any other harmful code that is directed at, enacted upon or introduced into any computer system and is designed to access, alter, corrupt, damage, delete, destroy, disrupt, encrypt, exploit, use or prevent or restrict access to or the use of any part of any computer system or otherwise disrupt its normal functioning or operation.
 - c. Denial of service attack which disrupts, prevents or restricts access to or use of any computer system, or otherwise disrupts its normal functioning or operation.
- 12. Defense within limits coverage** means those COVERAGES in this policy, as described in this Coverage Form and any endorsements, under which the payment of Supplementary Payments reduces and may exhaust the limits of insurance. **Defense within limits coverages** include **COVERAGE – CONTRACTORS POLLUTION LIABILITY, COVERAGE – TRANSPORTATION POLLUTION LIABILITY, COVERAGE – NON-OWNED DISPOSAL SITE LIABILITY, COVERAGE – PROFESSIONAL SERVICES LIABILITY** and any other **COVERAGE** under which the payment of Supplementary Payments reduces and may exhaust the limits of insurance.
- 13. Electronic data** means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.
- 14. Emergency response costs** means those reasonable and necessary **cleanup costs** incurred by a **Named Insured** in response to a **pollution condition** that poses an immediate and substantial threat to human health and the environment which requires an immediate response in order to mitigate or reduce such threat.
- 15. Employee** includes a **leased worker**. **Employee** does not include a **temporary worker**.
- 16. Environmental damage** means physical damage to land, surface water, groundwater, or biota, including the atmosphere, buildings or other structures from a **pollution condition** resulting in **cleanup costs**. **Environmental damage** does not include **property damage**.
- 17. Environmental law** means any federal, state, provincial, municipal or other local laws, statutes, ordinances, rules, guidance documents, regulations, judicial or administrative orders, directives and all applicable amendments, including state voluntary cleanup and risk-based corrective action guidance, that apply or may be applicable to an insured's responsibility for a **pollution condition**.
- 18. Environmental professional** means an individual or entity, approved by us in writing, who possesses sufficient specific education, training, and experience in a recognized field of environmental science necessary to exercise professional judgment in the development of opinions and conclusions regarding the presence of **pollution condition(s)** and who maintains adequate errors and omissions insurance.
- 19. Executive officer** means a person holding any of the officer positions created by your charter, constitution, by-laws or any other similar governing document.
- 20. Fungus** means an organism of the kingdom Fungi lacking chlorophyll and feeding on organic matter ranging from unicellular or multicellular organisms to spore-bearing syncytia, including **mold** or mildew and any mycotoxins, spores, scents or byproducts produced or released by fungi.

21. Hazardous properties includes radioactive, toxic or explosive properties.

22. Illicit abandonment means deliberate abandonment or disposal of **pollutants** provided that such abandonment was committed by a person or entity other than an insured and without the knowledge of a **responsible employee**.

23. Impaired property means tangible property, other than **your product** or **your work**, that cannot be used or is less useful because:

- a. It incorporates **your product** or **your work** that is known or thought to be defective, deficient, inadequate or dangerous; or
- b. You have failed to fulfill the terms of a contract or agreement;

if such property can be restored to use by the repair, replacement, adjustment or removal of **your product** or **your work** or your fulfilling the terms of the contract or agreement.

24. Insured contract means:

a. For **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY**:

- (1) A written contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an **insured contract**;
- (2) A written sidetrack agreement;
- (3) Any written easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
- (4) An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
- (5) A written elevator maintenance agreement;
- (6) That part of any other written contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for **bodily injury, property damage or environmental damage** to a third person or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

However, an **insured contract** under Paragraph (6) does not include that part of any contract or agreement:

- (a) That indemnifies a railroad for **bodily injury, property damage or environmental damage** arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, road-beds, tunnel, underpass or crossing;
- (b) That indemnifies an architect, engineer or surveyor for injury or damage arising out of:
 - i. Preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
 - ii. Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or
- (c) Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render **professional services**, including those listed in Item (b) above and supervisory, inspection, architectural or engineering activities;

but only if such contract or agreement in (1) through (6) above is executed prior to the earlier of when the **bodily injury** or **property damage** first occurs or the **occurrence** first takes place.

b. For all **COVERAGES** in **COVERAGE PART: CONTRACTORS ENVIRONMENTAL LIABILITY**:

That part of any written contract or agreement under which you assume the tort liability of another party to pay for **bodily injury**, **property damage** or **environmental damage** to a third person or organization, but only if:

- (1) Such **bodily injury**, **property damage** or **environmental damage** arises from a **pollution condition** directly caused by your **covered operations**; and
- (2) Such contract or agreement is executed prior to the earlier of when:
 - (a) The **bodily injury** or **property damage** first occurs; or
 - (b) The **pollution condition** first commences.

Tort liability means a liability that would be imposed by law in the absence of any contract or agreement. However, an **insured contract** does not include that part of any contract or agreement under which you assume tort liability for the sole negligence of any person or organization.

25. Job site means a location, other than a **covered location**, where the **Named Insured** is performing **covered operations**.

26. Leased worker means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. **Leased worker** does not include a **temporary worker**.

27. Loading or unloading means the handling of property:

- a. After it is moved from the place where it is accepted for movement into or onto an aircraft, watercraft or **auto**;
- b. While it is in or on an aircraft, watercraft or **auto**; or
- c. While it is being moved from an aircraft, watercraft or **auto** to the place where it is finally delivered;

but **loading or unloading** does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or **auto**.

28. Mediation means the voluntary and non-binding process by which a qualified, professional mediator, appointed by you and other parties to a **claim** with our written consent, intercedes in a dispute with the intention to reconcile and resolve a **claim**.

29. Mobile equipment means any of the following types of land vehicles, including any attached machinery or equipment:

- a. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
- b. Vehicles maintained for use solely on or next to premises you own or rent;
- c. Vehicles that travel on crawler treads;
- d. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:
 - (1) Power cranes, shovels, loaders, diggers or drills; or
 - (2) Road construction or resurfacing equipment such as graders, scrapers or rollers;

- e. Vehicles not described in Paragraph **a.**, **b.**, **c.** or **d.** above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:
 - (1) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment; or
 - (2) Cherry pickers and similar devices used to raise or lower workers;
- f. Vehicles not described in Paragraph **a.**, **b.**, **c.** or **d.** above maintained primarily for purposes other than the transportation of persons or cargo.
However, self-propelled vehicles with the following types of permanently attached equipment are not **mobile equipment** but will be considered **autos**:
 - (1) Equipment designed primarily for:
 - (a) Snow removal;
 - (b) Road maintenance, but not construction or resurfacing; or
 - (c) Street cleaning;
 - (2) Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and
 - (3) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment.

However, **mobile equipment** does not include any land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the state where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered **autos**.

- 30. **Mold** means any of the various **fungus** responsible for the disintegration of organic or inorganic matter, or the growth of such **fungus**.
- 31. **Named Insured** means the entity listed on the Declarations as the **Named Insured**.
- 32. **Natural resource damage** means physical injury to or destruction of, or loss of natural resources including land, fish, wildlife, biota, air, water, groundwater, drinking water supplies, and other such resources belonging to, managed by, held in trust by, appertaining to, or otherwise controlled by: the United States of America; Canada; any State, Provincial, Territorial or local government; any foreign entity; or any Native American Tribe. **Natural resource damage** includes:
 - a. Resources subject to a trust restriction or alienation by any member of a Native American Tribe; or
 - b. Resources that are subject to the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1801 et seq.).
- 33. **Non-owned disposal site** means any facility used by or on behalf of the **Named Insured** for waste treatment, processing, storage or disposal of waste materials or products generated from your **covered operations** or a **covered location**, provided that as of the date such waste materials or products were delivered to the facility, such facility:
 - a. Is not leased, managed, operated or owned by a bankrupt or financially insolvent entity;
 - b. Is not, and had not been at any time, leased, rented, managed, operated or owned by any insured or any affiliate or subsidiary of any insured;
 - c. Is located in the United States of America (including its territories and possessions), Puerto Rico or Canada, and is permitted or licensed by any applicable federal, state, local or provincial authorities to accept materials or wastes;

- d. Is not subject to a consent order or corrective action under any **environmental law** or listed on any proposed or final Federal National Priorities Lists (NPL) and any State, Provincial or local equivalent NPL, Superfund, or Hazardous Waste List prior to the date the material or waste are accepted by the facility; and
- e. Is not subject to, and has not been subject to in the four years prior to the effective date of the **policy period**, an information request under Section 104(e) of the Comprehensive Environmental Response, Compensation, and Liability Act or Section 3007(a) of the Resource Conservation and Recovery Act, or any state, provincial, tribal or local equivalent request.

Waste materials or products includes, but is not limited to, laboratory analytical samples.

34. Nuclear facility means:

- a. Any **nuclear reactor**;
- b. Any equipment or device designed or used for:
 - (1) Separating the isotopes of uranium or plutonium; or
 - (2) Processing or utilizing **spent fuel**; or
 - (3) Handling, processing or packaging **nuclear waste**; or
- c. Any equipment or device used for the processing, fabricating or alloying of **special nuclear material** if at any time the total amount of such material in the custody of the insured at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;
- d. Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of **nuclear waste**;

and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

35. Nuclear material means **source material**, **special nuclear material** or **by-product material**.

36. Nuclear reactor means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.

37. Nuclear waste means any waste material:

- a. Containing **by-product material** other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its **source material** content, and
- b. Resulting from the operation by any person or organization of any **nuclear facility** included under the first two paragraphs of the definition of **nuclear facility**.

38. Occurrence means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

39. Personal and advertising injury means injury, including consequential **bodily injury**, arising out of one or more of the following offenses:

- a. False arrest, detention or imprisonment;
- b. Malicious prosecution;
- c. The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;

- d. Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services;
- e. Oral or written publication, in any manner, of material that violates a person's right of privacy;
- f. The use of another's advertising idea in your **advertisement**; or
- g. Infringing upon another's copyright, trade dress or slogan in your **advertisement**.

40. Policy period means the period listed on the Declarations or as amended by endorsement issued by us and made a part of this policy.

41. Pollutants means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, asbestos, chemicals, hazardous substances, petroleum hydrocarbons, viruses and bacteria including *Legionella pneumophila*, low-level radioactive waste, electromagnetic fields, mold, and waste including medical, infectious and pathological wastes and materials to be recycled, reconditioned or reclaimed.

42. Pollution condition means the emission, discharge, dispersal, seepage, migration, release or escape of **pollutants** into or upon the land, surface water, groundwater, or biota, including the atmosphere, buildings or other structures, provided that: (i) such emission, discharge, dispersal, seepage, migration, release or escape is caused by an **occurrence**; and (ii) the concentrations or amounts of such **pollutants** are in excess of those found naturally occurring in the environment. **Pollution condition** includes:

- a. **Illicit abandonment** at a **job site**; and
- b. The existence of **mold** in, on, or within a building or structure.

The entirety of any **pollution condition**, including any continuation, change or resumption of such **pollution condition**, and all **related pollution conditions** shall be deemed to be one **pollution condition**.

43. Products-completed operations hazard:

- a. Includes all **bodily injury, property damage or environmental damage** occurring away from premises you own or rent and arising out of **your product or your work** except:

- (1) Products that are still in your physical possession; or
- (2) Work that has not yet been completed or abandoned. However, **your work** will be deemed completed at the earliest of the following times:
 - (a) When all of the work called for in your contract has been completed.
 - (b) When all of the work to be done at the **job site** has been completed if your contract calls for work at more than one **job site**.
 - (c) When that part of the work done at a **job site** has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

- b. Does not include **bodily injury, property damage or environmental damage** arising out of:
 - (1) The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by you, and that condition was created by the **loading or unloading** of that vehicle by any insured;
 - (2) The existence of tools, uninstalled equipment or abandoned or unused materials; or
 - (3) Products or operations for which the classification, listed in the Declarations or in a policy schedule, states that products-completed operations are subject to the General Aggregate Limit.

44. Professional services means services while acting in the capacity of an appraiser, auditor, construction manager, consultant, engineer, inspector, laboratory service provider, LEED accredited professional, project manager, waste broker or surveyor, but only if described in your application. **Professional services** includes, in any of those capacities, the preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications, supervisory and inspection activities, and making recommendations for the site selection, remedy selection, transportation, disposal or treatment of **pollution conditions**.

Professional services does not include:

- (1) The actual work of construction, erection, demolition, dismantling, assembly, fabrication, installation or maintenance performed by you or by those acting on your behalf; or
- (2) The selection or implementation of any means, methods, techniques, sequences or procedures used in such work described in Paragraph (1).

45. Professional services wrongful act means any actual or alleged negligent act, error or omission committed by you or those acting on your behalf in rendering, or failing to render, **professional services** to others for a fee.

46. Property damage means:

- a. Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or
- b. Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the **occurrence** that caused it; or
- c. Diminution in the value of such property; or
- d. **Natural resource damage**.

Property damage does not include **cleanup costs** or **environmental damage**.

For the purposes of this insurance, **electronic data** is not tangible property.

47. Related claims means two or more **claims** that are logically or causally connected by any fact, circumstance, transaction, **pollution condition**, event, **professional services wrongful act** or **related professional services wrongful acts**.

48. Related pollution conditions means two or more **pollution conditions** that are logically or causally connected by any fact, circumstance, transaction, **professional services wrongful act** or event.

49. Related professional services wrongful acts means two or more **professional services wrongful acts** that are logically or causally connected by any fact, circumstance, transaction, **pollution condition** or event.

50. Responsible employee means any of the insured's:

- a. Owners, officers, directors, or partners;
- b. Managers or supervisors;
- c. **Employees** who are responsible for environmental or health and safety affairs; or
- d. **Employees** who are authorized to give or receive notice of a **claim**, **occurrence** or **pollution condition**.

51. Restoration costs means reasonable and necessary costs incurred by the insured to repair, replace or restore real or personal property to place it in substantially the same condition it was in prior to being damaged while incurring **cleanup costs**. **Restoration costs** do not include:

- a. Any costs incurred by the insured without our prior written consent; and
- b. Any costs associated with a betterment or improvement of such real or personal property.

- 52. Source material, special nuclear material, and by-product material** have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.
- 53. Spent fuel** means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a **nuclear reactor**.
- 54. Suit** means a civil proceeding in which damages or **cleanup costs** because of **bodily injury, property damage, personal and advertising injury, environmental damage or professional services wrongful acts** are alleged. **Suit** includes:
- a. An arbitration proceeding in which such damages or **cleanup costs** are claimed and to which the insured must submit or does submit with our consent; or
 - b. Any other alternative dispute resolution proceeding in which such damages or **cleanup costs** are claimed and to which the insured submits with our consent.
- 55. Temporary worker** means a person who is furnished to you to substitute for a permanent **employee** on leave or to meet seasonal or short-term workload conditions.
- 56. Transportation operations** means, during **covered operations**, the movement, including the **loading and unloading**, of your goods, products or waste while being transported by aircraft, **auto**, rolling stock or watercraft beyond the legal boundaries of a **job site** to the final destination by the **Named Insured** or **carrier**.
- Transportation operations** will be deemed completed when the earliest of the following occurs:
- a. Your goods, products or waste are moved to the final destination by the **Named Insured** or **carrier**; or
 - b. Seventy-two (72) hours after being at rest or not in transit if your goods, products or waste have not yet reached the final delivery place or final destination.
- 57. Volunteer worker** means a person who is not your **employee**, and who donates his or her work and acts at the direction of and within the scope of duties determined by you, and is not paid a fee, salary or other compensation by you or anyone else for their work performed for you.
- 58. Your product:**
- a. Means:
 - (1) Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:
 - (a) You;
 - (b) Others trading under your name; or
 - (c) A person or organization whose business or assets you have acquired; and
 - (2) Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.
 - b. Includes:
 - (1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of **your product**; and
 - (2) The providing of or failure to provide warnings or instructions.
 - c. Does not include vending machines or other property rented to or located for the use of others but not sold.
- 59. Your work:**
- a. Means:

- (1) Work or operations performed by you or on your behalf; and
- (2) Materials, parts or equipment furnished in connection with such work or operations.

b. Includes:

- (1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of **your work** and
- (2) The providing of or failure to provide warnings or instructions.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**AMENDED DAMAGE TO YOUR WORK EXCLUSION – EXCEPTION FOR
CONTRACTORS POLLUTION LIABILITY**

This endorsement modifies coverage provided under the following:

CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART

The following is added to the **Damage To Your Work** exclusion in **GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)** of **SECTION I – COVERAGES**:

This exclusion does not apply to **COVERAGE – CONTRACTORS POLLUTION LIABILITY**.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FUNGI AND MOLD LIABILITY COVERAGE – CLAIMS-MADE

This endorsement modifies coverage provided under the following:

CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART

SCHEDULE

Fungi and Mold Each Pollution Condition Limit:	\$1,000,000	
Fungi and Mold Aggregate Limit:	\$1,000,000	
Deductible:	\$5,000	Each Claim
Retroactive Date:	01/01/2015	

- A. Coverage provided by this insurance for **fungus** or **mold** is subject to **COVERAGE – FUNGI AND MOLD LIABILITY** as described in this endorsement.
- B. The following is added to **COVERAGE PART: CONTRACTORS ENVIRONMENTAL LIABILITY** of **SECTION I – COVERAGES**:

COVERAGE – FUNGI AND MOLD LIABILITY

This **COVERAGE** is claims-made and reported and is a **defense within limits coverage**.

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages or **cleanup costs** because of **bodily injury, property damage** or **environmental damage** to which this insurance applies. We will have the right and duty to defend the insured against any **suit** seeking those damages or **cleanup costs**. However, we will have no duty to defend the insured against any **suit** seeking damages or **cleanup costs** for **bodily injury, property damage** or **environmental damage** to which this insurance does not apply. We may, at our discretion, investigate any **pollution condition** and settle any **claim** or **suit** that may result. But:

- (1) The amount we will pay for damages, **cleanup costs** and Supplementary Payments is limited as described in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**; and
- (2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements, **cleanup costs** or Supplementary Payments under this policy.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

- b. This insurance applies to **bodily injury, property damage** or **environmental damage** involving **fungus or mold** only if:

- (1) The **bodily injury, property damage** or **environmental damage** is directly caused by a **pollution condition** involving **fungus or mold** that takes place in the **coverage territory**;
- (2) The **pollution condition** is directly caused by your **covered operations** first performed on or after the Retroactive Date, if any, shown in the SCHEDULE above and before the end of the **policy period**;

- (3) The **bodily injury, property damage or environmental damage** first occurs on or after the Retroactive Date, if any, shown in the SCHEDULE above and before the end of the **policy period**;
 - (4) A **claim** for damages or **cleanup costs** because of the **bodily injury, property damage or environmental damage** is first made against the insured, in accordance with paragraphs f. and g. below, during the **policy period**;
 - (5) The **claim** is reported to us in writing during the **policy period** or the Extended Reporting Period we provide for this **COVERAGE** under **SECTION V – EXTENDED REPORTING PERIOD**; and
 - (6) Prior to the **policy period**, no insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** and no **responsible employee** knew that the **bodily injury, property damage or environmental damage** had occurred, in whole or in part. If such a listed insured or **responsible employee** knew, prior to the policy period, that the **bodily injury, property damage or environmental damage** occurred, then any continuation, change or resumption of such **bodily injury, property damage or environmental damage** during or after the **policy period** will be deemed to have been known prior to the **policy period**.
- c. **Bodily injury, property damage or environmental damage** which occurs during the **policy period** and was not, prior to the **policy period**, known to have occurred by any insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** or any **responsible employee**, includes any continuation, change or resumption of that **bodily injury, property damage or environmental damage** after the end of the **policy period**.
- d. **Bodily injury, property damage or environmental damage** will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of **SECTION II – WHO IS AN INSURED** or any **responsible employee**:
- (1) Reports all, or any part, of the **bodily injury, property damage or environmental damage** to us, any other insurer or any governmental authority;
 - (2) Receives a written or verbal demand or **claim** for damages or **cleanup costs** because of the **bodily injury, property damage or environmental damage**; or
 - (3) Becomes aware by any other means that **bodily injury, property damage or environmental damage** has occurred or has begun to occur.
- e. Damages because of **bodily injury** include damages claimed by any person or organization for care, loss of services or death resulting at any time from **bodily injury**.
- f. A **claim** by a person or organization seeking damages or **cleanup costs** will be deemed to have been made at the earlier of the following times:
- (1) When notice of such **claim** is received and recorded by any insured or by us, whichever comes first; or
 - (2) When we make settlement in accordance with Paragraph a. above.
- g. All **related claims** will be deemed a single **claim** first made on the date on which the first **claim** of the **related claims** was made, regardless of whether that date is before the **policy period**.
- If an otherwise covered **claim** is first made against an insured and reported to us during this **policy period**, and provided you subsequently continue to maintain Fungi and Mold Liability Coverage with us on a continuous, uninterrupted basis, then all **related claims** that are:
- (1) Subsequently made against an insured; and
 - (2) Reported to us during one of those continuous, uninterrupted policies;

will be deemed to have been first made and reported to us during this **policy period**, and will be subject to the applicable limits, deductible, terms and conditions of this policy.

All **related pollution conditions** will be deemed to have first commenced on the date, and in the location where, the first **pollution condition** of the **related pollution conditions** commenced.

C. For the purposes of the coverage provided by this endorsement, **2. Exclusions** in **COVERAGE – CONTRACTORS PROFESSIONAL LIABILITY** of **SECTION I – COVERAGES** is incorporated into **COVERAGE – FUNGI AND MOLD LIABILITY** above as **2. Exclusions** for **COVERAGE – FUNGI AND MOLD LIABILITY**. All exclusions in this policy that apply to **COVERAGE – CONTRACTORS PROFESSIONAL LIABILITY** also apply to **COVERAGE – FUNGI AND MOLD LIABILITY**.

D. For the purposes of the coverage provided by this endorsement, the following is added to **1. Limits of Insurance** in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**:

Fungi and Mold Limits

Subject to the Policy Aggregate Limit, the Fungi and Mold Aggregate Limit shown in the SCHEDULE above is the most we will pay under **COVERAGE – FUNGI AND MOLD LIABILITY** for the sum of all damages, **cleanup costs** and Supplementary Payments arising out of **pollution conditions** involving **fungus** or **mold**.

Subject to the Policy Aggregate Limit and Fungi and Mold Aggregate Limit, the Fungi and Mold Each Pollution Condition Limit shown on the SCHEDULE above is the most we will pay under **COVERAGE – FUNGI AND MOLD LIABILITY** for the sum of all damages, **cleanup costs** and Supplementary Payments arising out of any one **pollution condition** involving **fungus** or **mold**, including all **related pollution conditions**.

E. Limits of Insurance shown in the SCHEDULE above do not increase the Limits of Insurance shown in the Declarations. Payments made under the Limits of Insurance shown in the Declarations erode the Limits of Insurance shown in the SCHEDULE above. Payments made under the Limits of Insurance shown in the SCHEDULE above erode the Limits of Insurance shown in the Declarations. Limits of Insurance shown in the SCHEDULE above are subject to, part of and not in addition to the Limits of Insurance shown in the Declarations.

F. For the purposes of the coverage provided by this endorsement, the following is added to **2. Deductible** of **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**:

The deductible amount shown in the SCHEDULE above applies to damages, **cleanup costs** and Supplementary Payments arising out of any one **pollution condition** involving **fungus** or **mold**, including all **related pollution conditions**.

G. **SECTION V – EXTENDED REPORTING PERIOD** also applies to **COVERAGE – FUNGI AND MOLD LIABILITY**.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

COVERAGE ENHANCEMENT – GREEN BUILDING UPGRADES – CONTRACTORS ENVIRONMENTAL LIABILITY AND ENVIRONMENTAL PREMISES LIABILITY

This endorsement modifies coverage provided under the following:

CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART
ENVIRONMENTAL PREMISES LIABILITY COVERAGE PART

SCHEDULE

Green Building Upgrades Aggregate Limit: \$50,000
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A. The following replaces the definition of **restoration costs in the **DEFINITIONS SECTION**:**

Restoration costs means reasonable and necessary costs incurred by the insured to repair, replace or restore real or personal property to place it in substantially the same condition it was in prior to being damaged while incurring **cleanup costs**. **Restoration costs** do not include:

- a. Any costs incurred by the insured without our prior written consent; and
- b. Any costs associated with a betterment or improvement of such real or personal property, except for covered **green building upgrades** as specified below.

Solely under **COVERAGE – CONTRACTORS POLLUTION LIABILITY COVERAGE** in **COVERAGE PART: CONTRACTORS ENVIRONMENTAL LIABILITY** and **COVERAGE – ON-SITE CLEANUP COSTS COVERAGE** and **COVERAGE – OFF-SITE CLEANUP COSTS COVERAGE** in **COVERAGE PART: ENVIRONMENTAL PREMISES LIABILITY**, **restoration costs** includes **green building upgrades** to damaged real property, but only if legally required to bring such real property into compliance with applicable and enforceable codes, laws or regulations that require the use of **green building materials**, and only to the extent specifically required by such codes, laws or regulations.

B. The following are added to the **DEFINITIONS SECTION:**

Green building upgrades mean the reasonable and necessary costs to purchase and install **green building materials** on damaged real property using qualified installation contractors.

Green building upgrades does not include any:

- a. Additional costs as a consequence of using **green building materials**, including but not limited to cost overruns, project delay costs, increase in funding costs, or additional debt service expenses;
- b. Costs based on or arising out of loss of use;
- c. Mark-up and profit charges for such purchase and installation; or
- d. Costs associated with the operation of such **green building materials** after installation.

Green building materials means products or construction materials that are recognized by the Leadership in Energy and Environmental Design (LEED®), Green Globes Assessment and Rating System, International Green Construction Code or Energy Star as:

- a. Being environmentally preferable or sustainable; or
- b. Providing enhanced energy efficiency.

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C. The following is added to 1. Limits of Insurance of SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE:

Subject to the Policy Aggregate Limit and all other Limits of Insurance, the Green Building Upgrade Aggregate Limit shown in the SCHEDULE above is the most we will pay for the sum of all **green building upgrades** under all **COVERAGES** where coverage for **green building upgrades** is provided by this Policy. Limits of Insurance shown on the SCHEDULE above are subject to, part of and not in addition to the Limits of Insurance shown on the Declarations. Payments for **green building upgrades** erode the Policy Aggregate Limit and all other applicable Limits of Insurance.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

INFECTIOUS DISEASES EXCLUSION

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART
PROFESSIONAL SERVICES LIABILITY COVERAGE PART
ENVIRONMENTAL PREMISES LIABILITY COVERAGE PART
PRODUCTS POLLUTION LIABILITY COVERAGE PART

The following exclusion is added to **GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)** of **SECTION I – COVERAGES**:

This insurance does not apply to any:

Infectious Disease

Bodily injury, property damage, personal and advertising injury, environmental damage, professional services wrongful acts or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any contagious or infectious disease.

This exclusion applies even if the **claims** against any insured allege negligence or other wrongdoing in the:

- a. Supervising, hiring, employing, training or monitoring of others that may be infected with and spread a communicable disease;
- b. Testing for a communicable disease;
- c. Failure to prevent the spread of the disease; or
- d. Failure to report the disease to authorities.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**PERFLOURINATED CHEMICALS, PER- AND POLYFLOUROALKYL
SUBSTANCES AND PERFLOUROCARBONS EXCLUSION**

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART
PROFESSIONAL SERVICES LIABILITY COVERAGE PART
ENVIRONMENTAL PREMISES LIABILITY COVERAGE PART
PRODUCTS POLLUTION LIABILITY COVERAGE PART

A. The following exclusion is added to GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES) in SECTION I – COVERAGES:

This insurance does not apply to any:

Perfluoroalkyl/Polyfluoroalkyl Substances

(1) Bodily injury, property damage, personal and advertising injury, environmental damage, professional services wrongful acts or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any actual, alleged, threatened or suspected inhalation, ingestion, absorption, consumption, discharge, dispersal, seepage, migration, release or escape of, contact with, exposure to, existence of, or presence of, any **perfluoroalkyl or polyfluoroalkyl substances** in any form at any time.

(2) Loss, cost or expense based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any:

- a. Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, abate, clean up, remove, contain, treat, detoxify, neutralize, remediate, or dispose of, or in any way respond to, or assess the effects of **perfluoroalkyl or polyfluoroalkyl substances** in any form by any insured or by any other person of entity; or
- b. **Claim** by or on behalf of a governmental authority for damages or cleanup costs because of testing for, monitoring, abating, cleaning up, removing, containing, treating, detoxifying, neutralizing, remediating, or disposing of, or in any way responding to, or assessing the effects of, **perfluoroalkyl or polyfluoroalkyl substances** in any form.

B. The following is added to the DEFINITIONS SECTION:

Perfluoroalkyl or polyfluoroalkyl substances means any chemical or substance that contains one or more alkyl carbons on which hydrogen atoms have been partially or completely replaced by fluorine atoms, including but not limited to:

- a. Polymer, oligomer, monomer or nonpolymer chemicals and their homologues, isomers, telomers, salts, derivatives, precursor chemicals, degradation products or by-products;
- b. Perfluoroalkyl acids (PFAA), such as perfluorooctanoic acid (PFOA) and its salts, or perfluorooctane sulfonic acid (PFOS) and its salts;
- c. Perfluoropolyethers (PFPE);
- d. Fluorotelomer-based substances; or
- e. Side-chain fluorinated polymers.

All other terms and conditions remain the same.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NAMED INSURED ENDORSEMENT

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART
PROFESSIONAL SERVICES LIABILITY COVERAGE PART
ENVIRONMENTAL PREMISES LIABILITY COVERAGE PART
PRODUCTS POLLUTION LIABILITY COVERAGE PART

SCHEDULE

Named Insured(s):

INDUSTRIAL SERVICES INC.

INDUSTRIAL SERVICES, INC WASHTENAW

The entity shown in the SCHEDULE above is added to the Declarations of this policy as a **Named Insured**.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PRIMARY AND NONCONTRIBUTORY – OTHER INSURANCE CONDITION

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART

The following is added to the **Other Insurance** Condition and supersedes any provision to the contrary:

Primary And Noncontributory Insurance

This insurance is primary to, and will not seek contribution from, any other insurance available to an additional insured under this policy provided that:

- a. The additional insured is a named insured under such other insurance; and
- b. The **Named Insured** has agreed in writing in a contract or agreement that this insurance would:
 - (1) Act primary to any other insurance available to the additional insured; and
 - (2) Would not seek contribution from any other insurance available to the additional insured.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WAIVER OF TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART

SCHEDULE

Name Of Person Or Organization:

Any person or organization that the "Named Insured" agreed to waive its rights of recovery against in a fully executed written contract.

The following is added to the **Transfer Of Rights Of Recovery Against Others To Us** condition of the **CONDITIONS SECTION**:

We waive any right of recovery we may have against the person or organization shown in the SCHEDULE above because of payments we make for injury or damage arising out of your negligence during:

1. Your ongoing operations; or
2. **Your work;**

performed under a written contract with such person or organization and included in the **products-completed operations hazard**. Such waiver by us applies only to the extent that the insured has waived its right of recovery against such person(s) or organization(s) in the written contract prior to loss. This waiver applies only to the person or organization shown in the SCHEDULE above.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CONTRACTORS AMENDATORY ENDORSEMENT

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART
PROFESSIONAL SERVICES LIABILITY COVERAGE PART

SCHEDULE

<u>Coverage</u>	<u>Limits Of Insurance</u>
Policy Aggregate or General Aggregate	1,000,000
Commercial General Liability Coverage	
Each Occurrence Limit	1,000,000
General Aggregate Limit (other than Products/Completed Operations)	1,000,000
Products/Completed Operations Aggregate Limit	1,000,000
Personal and Advertising Injury Limit (any one person or organization)	1,000,000
Contractors Pollution Liability Coverage	
Contractors Pollution Liability	1,000,000
Professional Liability Coverage	
Professional Liability	1,000,000

1. The following is added to the CONDITIONS SECTION:

Independent Contractors or Subcontractors

As a condition precedent to coverage for any **claim** arising out of work or operations performed by an independent contractor or subcontractor, the **Named Insured** must:

a. Prior to commencement of any work or operations, obtain:

- (1) Valid insurance policies that identify such independent contractor or subcontractor as a named insured, identify our **Named Insured** as an additional insured and evidence the following coverages, in force during the **policy period**:
 - (1) Commercial General Liability coverage with limits at least equal to, or greater than, the limits shown in the SCHEDULE above;
 - (2) Contractor's Pollution Liability coverage with limits at least equal to, or greater than, the limits shown in the SCHEDULE above;
 - (3) Professional Liability coverage with limits at least equal to, or greater than, the limits shown in the SCHEDULE above; and
 - (4) Workers' compensation insurance in compliance with the statutes of the applicable state.
- (2) A signed written contract or agreement with such independent contractor or subcontractor in which the independent contractor or subcontractor agrees to defend, indemnify and hold harmless all insureds against all **claims** arising out of the work or operations performed by the independent contractor or subcontractor.

(3) Proof that such independent contractor or subcontractor has all current licenses required by local and state statutes, regulations and ordinances.

b. In the event of such a **claim**, provide copies of all documents referenced in paragraph a. above as soon as practicable.

c. If at the time of an **occurrence, pollution condition or professional services wrongful act** involving an independent contractor or subcontractor, any of the conditions listed in Paragraph a. above are not met with regard to such independent contractors or subcontractors, this Policy will only provide coverage for the insured's liability arising out of directly or indirectly, in whole or in part, the work or operations performed for the insured or on the insured's behalf by such independent contractor or subcontractor to the same extent as it would have had the independent or subcontractor maintained the insurance described in paragraph a. above. Additionally:

(1) If the Limit of Insurance on the independent contractor or subcontractor's insurance is less than the Limits of Insurance shown in the SCHEDULE above then, with respect to any **claim** arising directly or indirectly, in whole or in part, from the work or operations performed by the independent contractor or subcontractor, the Limits of Insurance shown in the Declarations shall be reduced to the Limits of Insurance of the independent contractor or subcontractor's applicable insurance; or

(2) If the independent contractor or subcontractor does not have the applicable insurance in force at the time of an **occurrence, pollution condition or professional services wrongful act** then, with respect to any **claim** arising directly or indirectly, in whole or in part, the work or operations performed for the insured or on the insured's behalf by the independent contractor or subcontractor, the Limits of Insurance shown in the Declarations shall be reduced to \$100,000 each **occurrence, pollution condition or professional services wrongful act** and \$100,000 Policy Aggregate for all damages, **cleanup costs** and Supplementary Payments.

2. With respect to coverage for any **claim** arising out of work or operations performed by an independent contractor or subcontractor, our policy will not provide any insured coverage broader than the coverage afforded by the independent contractor's or subcontractor's insurance.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**EMERGENCY RESPONSE COSTS AGGREGATE LIMIT
AND DEDUCTIBLE ENDORSEMENT**

This endorsement modifies coverage provided under the following:

CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART
ENVIRONMENTAL PREMISES LIABILITY COVERAGE PART
PRODUCTS POLLUTION LIABILITY COVERAGE PART

SCHEDULE

Emergency Response Costs Aggregate Limit: 100,000

Deductible: 5,000

A. Coverage provided by this insurance for **emergency response costs** is subject to the Emergency Response Costs Aggregate Limit and Deductible shown in the SCHEDULE above.

B. The following is added to **1. Limits of Insurance** in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE:**

Subject to the Policy Aggregate Limit and the Each Pollution Condition Limit, the Emergency Response Costs Aggregate Limit shown in the SCHEDULE above is the most we will pay for all **emergency response costs** under this policy.

C. The following is added to **2. Deductible** in **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE:**

The deductible amount shown in the SCHEDULE above applies to all **emergency response costs** under this policy.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS –
SCHEDULED PERSON OR ORGANIZATION – FORM III**

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART

SCHEDULE

Name Of Additional Insured Person(s) Or Organization(s)	Location(s) Of Covered Operations
Any person or organization that the Named Insured agreed to add as an additional insured in a written contract or written agreement that was fully executed by the Named Insured prior to the performance of the Named Insured's work that is the subject of such written contract or written agreement.	Any location where required by the written contract or written agreement in which the Named Insured agreed to add the person or organization qualifying as an additional insured under this endorsement.

A. SECTION II – WHO IS AN INSURED is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for **bodily injury, property damage, environmental damage** or **personal and advertising injury** caused, in whole or in part, by:

1. Your acts or omissions; or
2. The acts or omissions of those acting on your behalf;

in the performance of your ongoing operations for the additional insured(s) at the location(s) designated above.

However:

1. The insurance afforded to such additional insured only applies to the extent permitted by law; and
2. If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

B. With respect to the insurance afforded to these additional insureds, the following additional exclusions apply:

This insurance does not apply to any **bodily injury, property damage** or **environmental damage** occurring after:

1. All work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance or repairs) to be performed by or on behalf of the additional insured(s) at the location of the covered operations has been completed; or

2. That portion of **your work** out of which the injury or damage arises has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as a part of the same project.
- C. With respect to the insurance afforded to these additional insureds, the following is added to **1. Limits of Insurance** of **SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE**:

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

1. Required by the contract or agreement; or
2. Available under the applicable Limits of Insurance shown in the Declarations;

whichever is less.

This endorsement shall not increase the applicable Limits of Insurance shown in the Declarations.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED – OWNERS, LESSEES OR CONTRACTORS – COMPLETED OPERATIONS

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART

SCHEDULE

Name Of Additional Insured Person(s) Or Organization(s):

Any person or organization that the Named Insured agreed to add as an additional insured in a written contract or written agreement that was fully executed by the Named Insured prior to the performance of the Named Insured's work that is the subject of such written contract or written agreement.

Location And Description Of Completed Operations:

Any location, and completed operations at such location, where required by the written contract or written agreement in which the Named Insured agreed to add the person or organization qualifying as an additional insured under this endorsement.

- A. SECTION II – WHO IS AN INSURED** is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for **bodily injury, property damage or environmental damage** caused, in whole or in part, by **your work** at the location designated and described in the Schedule of this endorsement performed for that additional insured and included in the **products-completed operations hazard**.

However:

1. The insurance afforded to such additional insured only applies to the extent permitted by law; and
2. If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

- B. With respect to the insurance afforded to these additional insureds, the following is added to 1. Limits of Insurance in SECTION III – LIMITS OF INSURANCE AND DEDUCTIBLE:**

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

1. Required by the contract or agreement; or
2. Available under the applicable Limits of Insurance shown in the Declarations;

whichever is less.

This endorsement shall not increase the applicable Limits of Insurance shown in the Declarations.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**DESIGNATED CONSTRUCTION PROJECT(S)
GENERAL AGGREGATE LIMIT**

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

SCHEDULE

Designated Construction Project(s):

Any construction project for which the Named Insured agreed to provide a designated per project aggregate limit in a written contract or written agreement that was fully executed by the Named Insured prior to the performance of the Named Insureds work that is the subject of such written contract or written agreement. Coverage afforded for such construction project will not be broader than the scope of insurance agreed to by the Named Insured in such written contract or written agreement.

Total Designated Construction Project Aggregate Limit: \$5,000,000

- A.** For all sums which the insured becomes legally obligated to pay as damages caused by **occurrences** under **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** of **SECTION I – COVERAGES**, and for all medical expenses caused by accidents under **COVERAGE – MEDICAL EXPENSES** of **SECTION I – COVERAGES**, which can be attributed only to ongoing operations at a single designated construction project shown in the SCHEDULE above:
1. A separate Designated Construction Project General Aggregate Limit applies to each designated construction project, and that limit is equal to the amount of the General Aggregate Limit shown in the Declarations.
 2. The Designated Construction Project General Aggregate Limit is the most we will pay for the sum of all damages under **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** of **SECTION I – COVERAGES**, except damages because of **bodily injury** or **property damage** included in the **products- completed operations hazard**, and for medical expenses under **COVERAGE – MEDICAL EXPENSES** of **SECTION I – COVERAGES** regardless of the number of:
 - a. Insureds;
 - b. **Claims** made or brought; or
 - c. Persons or organizations making or bringing **claims**.
 3. The Total Designated Construction Projects Aggregate Limit shown in the SCHEDULE above applies to all Designated Construction Projects and all Designated Construction Project General Aggregate Limits. The Total Designated Construction Projects Aggregate Limit shown in the SCHEDULE above is the most we will pay for the sum of all damages under **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** of **SECTION I – COVERAGES**, except damages because of **bodily injury** or **property damage** included in the **products-completed operations hazard**, and for medical expenses under **COVERAGE – MEDICAL EXPENSES** for all Designated Construction Projects combined. Upon exhaustion of the Total Designated Construction Projects Aggregate Limit, there is no further coverage for any designated construction project and all remaining Designated Construction Project General Aggregate Limits shall be deemed exhausted.

4. Any payments made under **COVERAGE – BODILY INJURY AND PROPERTY DAMAGE LIABILITY** of **SECTION I – COVERAGES** for damages or under **COVERAGE – MEDICAL EXPENSES** of **SECTION I – COVERAGES** for medical expenses shall reduce the Designated Construction Project General Aggregate Limit for that designated construction project and the Total Designated Construction Projects Aggregate Limit. Such payments shall not reduce the General Aggregate Limit or the Policy Aggregate Limit shown in the Declarations nor shall they reduce any other Designated Construction Project General Aggregate Limit for any other designated construction project shown in the SCHEDULE above.
5. The limits shown in the Declarations for Each Occurrence, Damage To Premises Rented To You and Medical Expense continue to apply. However, instead of being subject to the General Aggregate Limit or Policy Aggregate Limit shown in the Declarations, such limits will be subject to the applicable Designated Construction Project General Aggregate Limit.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**EXCLUSION – ABUSE, MOLESTATION, SEXUAL MISCONDUCT OR
SEXUAL OFFENSE**

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following is added to Paragraph 2. **Exclusions** in **COVERAGE A BODILY INJURY AND PROPERTY DAMAGE LIABILITY** and Paragraph 2. **Exclusions** in **COVERAGE B PERSONAL AND ADVERTISING INJURY** of **SECTION I – COVERAGES**:

This insurance does not apply to:

Abuse or Molestation

Any liability for **bodily injury, property damage or personal and advertising injury** sustained by any person arising out of:

(1) actual or threatened abuse, molestation, sexual misconduct or sexual offense by:

- (a) any insured;
- (b) any **employee** or **temporary worker** of any insured;
- (c) any **volunteer worker(s)**;
- (d) any other person hired, employed by or affiliated with a person or organization which has leased premises from or entered into a contract with any insured; or

(2) the negligent:

- (a) employment;
- (b) selection of volunteer(s);
- (c) investigation;
- (d) supervision;
- (e) reporting to the proper authorities, or failure to so report; or
- (f) continuation of employment or volunteers activities for or on behalf of the insured;

of any other person or organization for whom any insured is or ever was legally responsible and whose conduct would otherwise be excluded by this endorsement; or

(3) the negligent:

- (a) design;
- (b) control;
- (c) maintenance;
- (d) supervision;

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(e) inspection;

(f) investigation of prospective tenants;

of the insured's premises, which allegedly results in, or significantly contributes to, conduct which would be excluded in (1) above.

We shall not have any duty to defend any **suit** against the insured seeking damages on account of any such injury.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CONTRACTUAL LIABILITY – RAILROADS

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

SCHEDULE

Scheduled Railroad:

AS REQUIRED UNDER WRITTEN CONTRACT WITH THE NAMED INSURED

Designated Job Site:

AS REQUIRED UNDER WRITTEN CONTRACT WITH THE NAMED INSURED

With respect to operations performed for, or affecting, the Scheduled Railroad at a Designated Job Site shown in the SCHEDULE above, the following replaces the definition of **insured contract** in the **DEFINITIONS SECTION**:

Insured Contract means:

- a. A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner is not an **insured contract**;
- b. A sidetrack agreement;
- c. Any easement or license agreement;
- d. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
- e. An elevator maintenance agreement;
- f. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for **bodily injury** or **property damage** to a third person or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.

Paragraph f. does not include that part of any contract or agreement:

(1) That indemnifies an architect, engineer or surveyor for injury or damage arising out of:

(a) Preparing, approving or failing to prepare or approve maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or

(b) Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage;

(2) Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render any **professional services**, including those listed in Paragraph (1) above and supervisory, inspection, architectural or engineering activities.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

GEOTECHNICAL-RELATED OPERATIONS EXCLUSION

This endorsement modifies coverage provided under the following:

PROFESSIONAL SERVICES LIABILITY COVERAGE PART

The following is added to **2. Exclusions** in **COVERAGE – PROFESSIONAL SERVICES LIABILITY** of **SECTION I – COVERAGES**:

This insurance does not apply to any:

Geotechnical-Related Operations

Professional services wrongful act or claim based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any:

- (1)** Geotechnical engineering, analysis, surveys or inspections;
- (2)** Slope stability engineering, analysis, surveys or inspections;
- (3)** Material testing services, analysis or inspections;
- (4)** Non-destructive testing, analysis or inspections;
- (5)** Forensic testing, analysis or inspections; or
- (6)** Seismic engineering, analysis, surveys or inspections.

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

DESIGNATED PROFESSIONAL SERVICES ENDORSEMENT

This endorsement modifies insurance provided under the following:

PROFESSIONAL SERVICES LIABILITY COVERAGE PART

SCHEDULE

Designated Professional Services:

Professional Services performed by Named Insured directly associated with the installation/application of waterproofing, coatings, joint sealants, expansion joints, and air/vapor barriers

Solely for purposes of coverage provided under **COVERAGE – PROFESSIONAL SERVICES LIABILITY**, the following replaces the definition of **professional services** in the **DEFINITIONS SECTION**:

Professional services means services while acting in the capacity shown in the SCHEDULE above. **Professional services** includes, in such capacity, the preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications, supervisory and inspection activities, and making recommendations for the site selection, remedy selection, transportation, disposal or treatment of **pollution conditions**.

Professional services does not include:

- (1) The actual work of construction, erection, demolition, dismantling, assembly, fabrication, installation or maintenance performed by you or by those acting on your behalf; or
- (2) The selection or implementation of any means, methods, techniques, sequences or procedures used in such work described in Paragraph (1).

All other terms and conditions remain the same.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION OF CERTIFIED ACTS OF TERRORISM AND EXCLUSION OF OTHER ACTS OF TERRORISM COMMITTED OUTSIDE THE UNITED STATES

This endorsement modifies coverage provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
CONTRACTORS ENVIRONMENTAL LIABILITY COVERAGE PART
PROFESSIONAL SERVICES LIABILITY COVERAGE PART
ENVIRONMENTAL PREMISES LIABILITY COVERAGE PART
PRODUCTS POLLUTION LIABILITY COVERAGE PART

1. The following exclusion is added to **GENERAL EXCLUSIONS (APPLICABLE TO ALL COVERAGES)** of **SECTION I - COVERAGES**:

This insurance does not apply to:

TERRORISM

Any injury or damage based upon, arising out of, directly or indirectly resulting from, in consequence of, or in any way involving any **certified act of terrorism** or any **other act of terrorism** that is committed outside of the United States (including its territories and possessions and Puerto Rico), but within the **coverage territory**. However, with respect to an **other act of terrorism**, this exclusion applies only when one or more of the following are attributed to such act:

- a. The total of insured damage to all types of property exceeds \$25,000,000 (valued in U.S. dollars). In determining whether the \$25,000,000 threshold is exceeded, we will include all insured damage sustained by property of all persons and entities affected by the terrorism and business interruption losses sustained by owners or occupants of the damaged property. For the purpose of this provision, insured damage means damage that is covered by any insurance plus damage that would be covered by any insurance but for the application of any terrorism exclusions; or
- b. Fifty or more persons sustain death or serious physical injury. For the purposes of this provision, serious physical injury means:
 - (1) Physical injury that involves a substantial risk of death; or
 - (2) Protracted and obvious physical disfigurement; or
 - (3) Protracted loss of or impairment of the function of a bodily member or organ; or
- c. The terrorism involves the use, release or escape of nuclear materials, or directly or indirectly results in nuclear reaction or radiation or radioactive contamination; or
- d. The terrorism is carried out by means of the dispersal or application of pathogenic or poisonous biological or chemical materials; or
- e. Pathogenic or poisonous biological or chemical materials are released, and it appears that one purpose of the terrorism was to release such materials.

With respect to this exclusion, Paragraphs **a.** and **b.** describe the thresholds used to measure the magnitude of an incident of an **other act of terrorism** and the circumstances in which the threshold will apply for the purpose of determining whether this exclusion will apply to that incident.

2. The following definitions are added to the **DEFINITIONS SECTION**:

- a. For the purposes of this endorsement, **any injury or damage** means any injury or damage covered under any Coverage Part to which this endorsement is applicable, and includes but is not limited to **bodily injury, property damage, personal and advertising injury, environmental damage or professional services wrongful acts** as may be defined in any applicable Coverage Part.
 - b. **Certified act of terrorism** means an act that is certified by the Secretary of the Treasury, in accordance with the provisions of the federal Terrorism Risk Insurance Act, to be an act of terrorism pursuant to such Act. The criteria contained in the Terrorism Risk Insurance Act for a **certified act of terrorism** include the following:
 - (1) The act resulted in insured losses in excess of \$5 million in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act; and
 - (2) The act resulted in damage:
 - (a) Within the United States (including its territories and possessions and Puerto Rico); or
 - (b) Outside of the United States in the case of:
 - i. An air carrier (as defined in Section 40102 of title 49, United States Code) or United States flag vessel (or a vessel based principally in the United States, on which United States income tax is paid and whose insurance coverage is subject to regulation in the United States), regardless of where the loss occurs; or
 - ii. The premises of any United States mission; and
 - (3) The act is a violent act or an act that is dangerous to human life, property or infrastructure and is committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.
 - c. **Other act of terrorism** means a violent act or an act that is dangerous to human life, property or infrastructure that is committed by an individual or individuals and that appears to be part of an effort to coerce a civilian population or to influence the policy or affect the conduct of any government by coercion, and the act is not a **certified act of terrorism**.

Multiple incidents of an **other act of terrorism** which occur within a seventy-two hour period and appear to be carried out in concert or to have a related purpose or common leadership shall be considered to be one incident.
3. The terms and limitations of any terrorism exclusion, or the inapplicability or omission of a terrorism exclusion, do not serve to create coverage for injury or damage that is otherwise excluded under this Coverage Part.

All other terms and conditions remain the same.

Non-Policy Forms

The following forms were sent to you with your policy, but they are not part of your policy. They contain information which you may find useful about your policy, insurance in general, your premium payments, or other topics of interest. These forms do not give you insurance coverage. Refer to the forms that are part of your policy to determine if a loss is covered, and what we will pay, as well as your rights and duties.

IL P 001 01 04

U.S. TREASURY DEPT OFFICE OF FOREIGN ASSETS
NOTICE (OFAC)

3 0-00-0000 01/07/2026 SNB CPW PR 1.000

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

MICHIGAN CHANGES – CANCELLATION AND NONRENEWAL

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTOMOBILE COVERAGE PART
COMMERCIAL GENERAL LIABILITY COVERAGE PART
COMMERCIAL INLAND MARINE COVERAGE PART
CRIME AND FIDELITY COVERAGE PART
EMPLOYMENT-RELATED PRACTICES LIABILITY COVERAGE PART
EQUIPMENT BREAKDOWN COVERAGE PART
FARM COVERAGE PART
MEDICAL PROFESSIONAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

A. The **Cancellation** Common Policy Condition is amended as follows:

1. Paragraph 1. is replaced by the following:

The first Named Insured shown in the Declarations may cancel this Policy by giving us or our authorized agent notice of cancellation.

2. Paragraph 3. is replaced by the following:

We will mail or deliver our notice to the first Named Insured's last mailing address known to us or our authorized agent.

3. Paragraph 5. is replaced by the following:

If this Policy is cancelled, we will send the first Named Insured any pro rata premium refund due. The minimum earned premium shall not be less than the pro rata premium for the expired time or \$25.00, whichever is greater. The cancellation will be effective even if we have not made or offered a refund.

B. The following condition is added and supersedes any other provision to the contrary:

Nonrenewal

If we decide not to renew this Policy, we will mail or deliver to the first Named Insured's last mailing address known to us or our authorized agent written notice of the nonrenewal not less than 30 days before the expiration date.

If notice is mailed, proof of mailing shall be sufficient proof of notice.

POLICY NUMBER: 793-01-45-94-0000
NAMED INSURED: INDUSTRIAL SERVICES INC.
ISSUE DATE: 01/07/2026
EFFECTIVE DATE: 01/01/2026

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

SERVICE OF SUIT

All coverages in this policy are subject to the following condition.

Service of Suit

1. We designate and authorize the following person as our agent for service of process by certified mail, return receipt requested, for any proceeding instituted by or on behalf of the insured, or any beneficiary under this policy, and arising out of this policy of insurance made:

General Counsel
Intact Insurance Specialty Solutions - Legal Department
605 North Highway 169
Suite 800
Plymouth, MN 55441
2. If required by applicable statute, we also designate the Superintendent, Commissioner or Director of Insurance, or other officer or individual specified in the law of the jurisdiction in which this policy is issued, to receive on our behalf service of process for any proceeding instituted by or on behalf of the insured, or any beneficiary under this policy, and arising out of this policy of insurance. We authorize the Superintendent, Commissioner, Director or other officer or individual upon whom service is made to mail a copy of the process to the person identified in Paragraph 1. above.
3. In Rhode Island, we also designate and authorize the following person as our agent for service of process for any proceeding instituted by or on behalf of the insured, or any beneficiary under this policy, and arising out of this policy of insurance:

Sherry A. Goldin
10 Weybosset Street
Providence, Rhode Island 02903
4. In Oregon, service of process for any proceeding instituted by or on behalf of the insured, or any beneficiary under this policy, and arising out of this policy of insurance may be made upon the insurance producer in the courts for the county where the insurance producer who registered or delivered the policy resides or transacts business.
5. By agreeing to the service of process provisions above, we do not waive our right to commence an action in any court of competent jurisdiction in the United States, remove an action to a United States District Court or seek a transfer of a case to another court as permitted by the laws of the United States or of any state within the United States.

As used above, the word "insured" means any person or organization qualifying as an insured under the policy, and the words "we," "us" and "our" refer to the company providing this insurance.